



CHAPTER xxxix

An Act to confer further powers on the Corporation of Oldbury in regard to lands to authorise the supply of heat by means of hot water or steam to make further provision in reference to the health improvement local government and finances of the borough of Oldbury and for other purposes. [30th July 1949.]

WHEREAS the borough of Oldbury is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough acting by the council (in this Act respectively referred to as "the borough" and "the Corporation"):

And whereas it is expedient to empower the Corporation to supply heat by means of hot water or steam within the borough:

And whereas it is expedient that further and better provision should be made with reference to lands streets buildings nuisances and sanitary matters and for the local government and improvement of the borough and that the powers of the Corporation in relation thereto should be enlarged and extended:

And whereas it is expedient to make further provision with regard to the finances of the borough as by this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

23 & 24 Geo. 5.
c. 51.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and

with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the Oldbury Corporation Act 1949.

Division of
Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Heating undertaking.

Part IV.—Streets buildings sewers and drains.

Part V.—Infectious disease sanitary provisions and nuisances.

Part VI.—Finance and rating.

Part VII.—Miscellaneous.

Part VIII.—General.

Incorporation
of Lands
Clauses Acts.
8 & 9 Vict.
c. 18.

3. The Lands Clauses Acts except sections 127 to 132 of the Lands Clauses Consolidation Act 1845 (so far as such Acts are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the common seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

Interpretation.
26 Geo. 5. &
1 Edw. 8.
c. 49.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless otherwise expressly enacted or unless the subject or context otherwise requires—

55 & 56 Vict.
c. 57.

“The Act of 1892” means the Private Street Works Act 1892;

19 & 20 Geo. 5.
c. lxxi.

“The Act of 1929” means the Oldbury Urban District Council Act 1929;

“The Act of 1933” means the Local Government Act 1933;

“The Act of 1936” means the Public Health Act 1936;

“Authorised security” means any mortgage stock bond or other security which the Corporation are for the time

being authorised to grant create or issue or upon or by means of which the Corporation are for the time being authorised to raise money ;

“ The authority ” means the British Electricity Authority ;

“ The Birmingham Corporation ” means the lord mayor aldermen and citizens of the city of Birmingham.

“ The borough ” means the borough of Oldbury ;

“ Child ” has the same meaning as in the Education Act 1944 ; 7 & 8 Geo. 6.
c. 31.

“ The commission ” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ; 10 & 11 Geo. 6.
c. 49.

“ The company ” means the South Staffordshire Waterworks Company ;

“ Contravention ” includes failure to comply and “ contravene ” shall be construed accordingly ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough of Oldbury ;

“ The council ” means the council of the borough ;

“ The county ” means the administrative county of Worcester ;

“ The county council ” means the county council of the county ;

“ Daily penalty ” means a penalty for each day on which an offence is continued after conviction therefor ;

“ The electricity board ” means the Midlands Electricity Board ;

“ Electric line ” has the same meaning as in the Electric Lighting Act 1882 ; 45 & 46 Vict.
c. 56.

“ Enactment ” includes this Act and any general or local Act Order byelaw or regulation for the time being in force within the borough ;

“ Financial year ” means the period of twelve months ending on the thirty-first day of March ;

“ Food ” has the meaning assigned to it by section 100 of the Food and Drugs Act 1938 ; 1 & 2 Geo. 6.
c. 56.

“ The gas board ” means the West Midlands Gas Board ;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;

PART I
—cont.

9 & 10 Geo. 5.
c. 57.
10 & 11 Geo. 6.
c. 51.

38 & 39 Vict.
c. 55.

38 & 39 Vict.
c. 83.

41 & 42 Vict.
c. 76.

“The heating undertaking” means the undertaking authorised by Part III (Heating undertaking) of this Act and includes all lands stations boiler-houses properties works buildings machinery plant mains pipes wires posts ducts apparatus appliances easements rights powers and privileges for the time being belonging to or held used or enjoyed by the Corporation for or in connection with the supply of heat by means of hot water or steam ;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 and by this Act ;

“Local planning authority” has the same meaning as in the Town and Country Planning Act 1947 ;

“The Minister” means the Minister of Health ;

“The Public Health Acts” means the Public Health Act 1875 and any Acts amending or extending that Act ;

“The Smethwick Corporation” means the mayor aldermen and burgesses of the county borough of Smethwick ;

“Statutory borrowing power” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933 ;

“Statutory security” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation ;

“Sunday school” means any school in which children are assembled for instruction on a Sunday or specially for religious instruction whether on a Sunday or not ;

“Telegraphic line” has the same meaning as in the Telegraph Act 1878 ;

“The town clerk” “the surveyor” “the medical officer” and “the sanitary inspector” mean respectively the town clerk the surveyor the medical officer of health and any sanitary inspector of the borough and “medical officer” includes any person duly appointed by the Corporation to discharge temporarily the duties of medical officer of health.

(3) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

5.—(1) The Corporation may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired under this Act with respect to his reinstatement elsewhere. Power to reinstate owners or occupiers of property.

(2) Any such agreement may provide for the exchange of land and for that purpose the Corporation may pay or receive money for equality of exchange.

6.—(1) The Corporation may advance money to the purchaser or lessee of any land in the borough acquired from or leased by the Corporation for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon: Loans for erection &c. of buildings.

Provided that any such advance shall not exceed in the case of a building being a house nine-tenths or in the case of any other building three-quarters of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

(2) Before any advance is made under this section its repayment shall be secured to the satisfaction of the Corporation by a mortgage of the land and building in respect of which the advance is to be made or of the lessee's interest therein and the instrument securing the advance shall (inter alia)—

- (a) fix the rate of interest to be paid being a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 of the Housing Act 1935; 25 & 26 Geo. 5. c. 40.
- (b) fix the period within which the advance is to be repaid being a period not exceeding thirty years from the date of the advance;
- (c) require the repayment to be made either by equal instalments of principal or by an annuity of principal and interest combined;
- (d) fix the intervals at which all payments on account of principal and interest are to be made being intervals not exceeding half a year;
- (e) authorise the borrower at any of the usual quarter days after one month's notice and on paying all sums due on account of interest to repay the whole of the outstanding principal of the advance or any part thereof being one hundred pounds (or such less sum as may be provided in the said instrument or as the Corporation may be prepared to accept) or a multiple of one hundred pounds (or of such less sum as aforesaid);

PART II
—cont.

- (f) where the repayment is to be made by an annuity of principal and interest combined and where part of the outstanding principal is repaid under paragraph (e) of this subsection provide for determining the amount by which the annuity shall be reduced ;
- (g) require the borrower to keep the building in respect of which the advance is made insured against fire to the satisfaction of the Corporation and to produce to the Corporation when required the receipts for the premiums paid in respect of the insurance ;
- (h) require the borrower to keep the said building in good repair.

(3) Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(4) The borrower may with the permission of the Corporation (which shall not be unreasonably withheld) at any time transfer his interest in the land and building in respect of which the advance was made but any such transfer shall be made subject to the terms of the instrument securing the advance.

(5) In this section the expression "lessee" includes a person to whom the Corporation have agreed to grant a lease and the expression "lease" shall be construed accordingly.

PART III

HEATING UNDERTAKING

Supply of
heat.

7.—(1) The Corporation may supply heat by means of hot water or steam to such premises as they may think fit in the borough upon and subject to the terms and conditions provided by this Act and such other terms and conditions as may be agreed between the Corporation and the owners or occupiers of those premises:

Provided that in the exercise of the powers of this section the Corporation shall not show undue preference to any person and shall not exercise any undue discrimination against any person.

(2) Before the Corporation enter into an agreement with the occupier of any premises for the supply of heat to such premises they shall give notice thereof to the owner of the premises and in the event of the supply of heat to such premises being discontinued notice shall be given by the Corporation to the owner of such premises.

8.—(1) Subject to the provisions of this Part of this Act the Corporation may—

PART III
—cont.

- (a) on in or under any lands in the borough belonging or leased to them ;
- (b) where they obtain a supply of hot water or steam or enter into any agreement under subsection (2) of this section also on in or under any lands in respect of which provision is made by such agreement for the exercise of rights for the purpose ;

Works &c.
for provision
of heat.

erect lay down maintain work and use stations boiler-houses mains pipes and other works for providing storing transmitting and distributing heat by means of hot water or steam and for producing any material product matter or thing arising or used in the process of such provision of heat by means of hot water or steam (including the generation of electricity) together with such buildings boilers engines machinery sidings matters and things of whatever description as may be required by the Corporation to enable them to provide store transmit and distribute heat by means of hot water or steam and the Corporation may accordingly on those lands provide store transmit and distribute heat by means of hot water or steam and may produce such materials products matters and things :

Provided that—

- (a) nothing in this section shall be taken to dispense with the consent of any government department to any use of any lands of the Corporation in any case in which such consent would have been required if this section had not been enacted ;
- (b) any electrical works or apparatus erected laid down maintained worked and used in pursuance of this section shall be so constructed maintained worked and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(2)(a) The Corporation may—

- (i) obtain for the purposes of this Part of this Act a supply of hot water or steam from any person and transmit such hot water or steam to and distribute heat by means thereof within the borough ; and
- (ii) generate electricity at any works established by them for the purposes of this Part of this Act and use all or any of such electricity only for or in connection with the supply of heat by means of hot water or steam at any works at which such electricity is generated or (with the consent of the authority and the electricity

PART III
—cont.

board) elsewhere or sell all or any of such electricity to the authority or (with the approval of the authority) the electricity board ;

(b) The Corporation may enter into and carry into effect agreements with any person for and with respect to any of the matters mentioned in paragraph (a) of this subsection and any such agreement may provide for the provision by the Corporation or for the joint user by them and any other party to the agreement of any works plant materials or things required for the purposes of the agreement.

As to construction of station for providing heat.

9.—(1) If the council shall resolve to construct extend modify or enlarge a station for providing heat under the powers of this Part of this Act the Corporation shall forthwith give to the Minister of Fuel and Power and the authority and the gas board notice of such resolution together with such information with regard to such station as the authority or the gas board (as the case may be) may within six weeks of the service of such notice reasonably require including information as to the nature position and capacity of the proposed station (but not details of design) the proposed method of producing heat thereat and the area proposed to be supplied therefrom and an estimate of the quantity or quantities of heat required by the Corporation for the purposes of the heating undertaking and of the times and form at and in which such quantity or quantities will be required Any dispute between the Corporation on the one hand and the authority and the gas board or either of them on the other hand as to whether any information is reasonably required by the authority and the gas board or either of them under this subsection shall be referred to and determined by the Minister of Fuel and Power.

(2) Within three months after the service of the said notice or the receipt of such information (whichever is the later) the authority and the gas board or either of them may serve upon the Corporation a counter-notice offering a supply of heat by means of hot water or steam to them upon such terms and conditions as may be specified in the counter-notice or as may be agreed between the Corporation and the authority or the gas board (as the case may be).

(3) If within three months after the receipt of such counter-notice or such longer period as may be agreed between the Corporation and the authority or the gas board (as the case may be) the terms and conditions upon which a supply of heat by means of hot water or steam is to be given to the Corporation by the authority for the purposes of the heating undertaking are not agreed between them the Corporation shall submit to the Minister for determination the question whether a supply of heat by means of hot water or steam shall be afforded to the

Corporation by the authority or the gas board and (if he determines that a supply of heat by means of hot water or steam is to be afforded by the authority or the gas board) the terms and conditions upon which such a supply is to be afforded.

(4) If the Minister determines that a supply of heat by means of hot water or steam shall be afforded to the Corporation by the authority or the gas board the authority or the gas board (as the case may be) shall afford such a supply in accordance with terms and conditions approved by the Minister:

Provided that if the Minister makes a substantial alteration in the terms or conditions on which the authority or the gas board offered a supply of heat by means of hot water or steam to the Corporation then if within twenty-eight days after the receipt of the determination of the Minister the authority or the gas board (as the case may be) give notice in writing to the Minister and the Corporation that the said terms or conditions are not acceptable they shall not be required to afford a supply of heat to the Corporation and the Corporation shall be entitled to proceed with their proposals as if this section had not been enacted unless within twenty-eight days of such last-mentioned notice the Corporation serve on the authority or the gas board (as the case may be) a notice requiring a supply in which case the authority or the gas board (as the case may be) shall afford a supply on the terms and conditions specified in the counter-notice referred to in subsection (2) of this section.

(5) (a) If the said station is constructed by the Corporation they shall supply and the authority shall take all the electricity generated thereat which is not—

- (i) required for or in connection with the supply of heat ; or
- (ii) supplied with the approval of the authority to the electricity board ;

upon such terms and conditions as may be agreed between the Corporation and the authority or in default of agreement determined by arbitration as hereinafter provided on the basis of a supply by a willing seller to a willing buyer.

(b) Any matter to be determined by arbitration under this subsection shall be referred to and determined by an arbitrator to be agreed upon between the Corporation and the authority or in default of agreement to be appointed by the President of the Institution of Electrical Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

10.—(1) The Corporation by means of an order made by the Corporation and submitted to the Minister and confirmed by him may be authorised to purchase land in the borough compulsorily for the purposes of the heating undertaking.

Compulsory
acquisition of
land for
heating
undertaking.

PART III
—cont.9 & 10 Geo. 6.
c. 49.

(2) The Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) shall apply as if this section were an enactment contained in a public general Act and in force immediately before the commencement of that Act.

(3) In this section the expression "land" includes easements and other rights in respect of land and the Corporation may be authorised under this section to acquire compulsorily such easements or rights only as they may require without purchasing any other interest in the land. In relation to the compulsory acquisition of any such easement or other right the said Acquisition of Land (Authorisation Procedure) Act 1946 (except section 2 thereof) and the enactments incorporated therewith shall have effect as if references (whatever the terms used) to the land comprised in the compulsory purchase order were construed where the context so requires as references to the land in respect whereof the easement or other right is acquired and references to the obtaining or taking possession of the land so comprised were construed as references to the exercise of the easement or other right.

(4) Where the Corporation have acquired an easement or right only in any land under this section—

- (a) they shall not be required or (except by agreement) entitled to fence off or sever that land from the adjoining land; and
- (b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use and cultivate the land as if this Act had not been passed.

(5) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the land the Corporation shall not be entitled under this section to acquire the easement or right unless the tribunal by whom the compensation is to be assessed determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

Power to lay
mains &c. and
break open
streets.
8 & 9 Geo. 6.
c. 42.

11.—(1) The provisions of Part V (Power to lay mains &c.) and Part VI (Breaking open streets &c.) and section 93 of the Third Schedule to the Water Act 1945 are hereby incorporated with this Part of this Act.

(2) For the purposes of this Part of this Act in the construction of the provisions incorporated by this section—

"the undertakers" means the Corporation;

“supplying water” means supplying heat by means of hot water or steam and “supply of water” shall be construed accordingly;

“service pipe” means a pipe for supplying heat by means of hot water or steam from a main to any premises; and

“the limits of supply” means the borough.

(3) Nothing in the provisions incorporated by this section shall authorise the Corporation—

(a) to lay down a main outside the borough except for the purpose of—

(i) giving or facilitating a supply of heat by means of hot water or steam within the borough; or

(ii) taking a supply of heat by means of hot water or steam from any works or premises outside the borough;

(b) to supply heat by means of hot water or steam to any premises outside the borough.

12.—(1) Before the Corporation—

(a) apply to the appropriate sanctioning authority for consent to the borrowing of money for the purpose of constructing laying down or executing any works for providing storing transmitting or distributing heat under the powers of this Part of this Act; or

(b) lay down any main under the provisions of this Part of this Act other than a main extending for a distance of not more than two hundred yards from any main laid down in accordance with proposals previously made under this section;

Consultation
with under-
takers as to
certain works.

they shall give to the Minister of Fuel and Power and to the authority and the electricity board and the gas board and the Birmingham Corporation and the company notice of their proposals and such information with regard thereto as the authority or the electricity board or the gas board or the Birmingham Corporation or the company may within six weeks of the receipt of such notice reasonably require and shall consult with the authority and the electricity board and the gas board and the Birmingham Corporation and the company on such proposals. Any dispute between the Corporation and the authority or the electricity board or the gas board or the Birmingham Corporation or the company as to whether any information is reasonably required by the authority or the electricity board or the gas board or the Birmingham Corporation or the company under this subsection shall be referred to and determined by the Minister of Fuel and Power.

PART III
—cont.

(2) Without prejudice to the generality of subsection (1) of this section such information shall include particulars of the proposals (if any) of the Corporation as to the standards of heat proposed to be maintained in premises supplied with heat under the powers of this Act and the measures to be taken with respect to—

- (a) the securing of the safety of the mains pipes and apparatus of the authority and the electricity board and the gas board and the Birmingham Corporation and the company from damage or injury arising directly or indirectly from any mains or pipes to be laid down by the Corporation under the powers of this Part of this Act ;
- (b) the insulation of any such last-mentioned mains or pipes so as to prevent the escape of heat therefrom ;
- (c) the maximum and minimum temperatures and pressures at which hot water or steam may be stored transmitted and distributed by the Corporation ;
- (d) the methods for measuring the volume temperature and pressure of the hot water or steam so stored transmitted and distributed ; and
- (e) the independent testing of such measurements.

(3) The authority and the electricity board or either of them may within three months after the receipt of such notice or the receipt of such information (whichever is the later) make representations to the Minister of Fuel and Power with respect to such proposals.

(4) The gas board or the Birmingham Corporation or the company may within three months after the receipt of such notice or the receipt of such information (whichever is the later) make representations to the Minister of Fuel and Power with respect to the laying down of a main in any street or to the laying down in any street of a main in the position or at the depth proposed by the Corporation or to any of the other proposals of the Corporation referred to in subsection (2) of this section.

(5) If no such representations are made the Corporation shall not proceed except in accordance with the proposals sent to the authority and the electricity board and the gas board and the Birmingham Corporation and the company or any alteration thereof which may be agreed.

(6) If any such representations are made the Corporation shall not proceed with their proposals except with the approval of the Minister of Fuel and Power and in accordance with any modification of such proposals which the said Minister may require.

(7) The provisions of this section shall not apply to the construction extension modification or enlargement of a station for providing heat under the powers of this Part of this Act.

13.—(1) In any premises to which the Corporation supply or propose to supply heat by means of hot water or steam they may provide (but not manufacture) and may supply by way either of sale or hire any such radiators pipes meters apparatus and fittings (in this Part of this Act referred to as “fittings”) as may be required for or in connection with the utilisation of the heat so supplied and may instal repair or alter any such fittings whether supplied by them or not and may provide any materials and do any work required in connection with such installation repair or alteration.

(2) The Corporation may make such charges as may be agreed or in default of agreement as may be reasonable for any fittings provided or supplied or any materials provided or work done under this section at the request of the owner or occupier of the premises supplied.

(3) Any fittings let by the Corporation for hire and marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof—

(a) shall not be subject to distress or to the landlord’s remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the person in whose possession the same may be ; and

(b) shall notwithstanding that they be fixed or fastened to any part of the premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and (subject to the provisions of the Hire Purchase Act 1938) removable by the Corporation :

1 & 2 Geo. 6.
c. 53.

Provided that nothing in this subsection shall affect the valuation for rating of any rateable hereditament.

(4) All fittings supplied by the Corporation under any hire purchase agreement shall until payment of the final instalment of the purchase money for such fittings be deemed for the purposes of subsection (3) of this section to be fittings let for hire by the Corporation.

(5) (a) The Corporation shall so adjust the charges to be made by them under this section as to meet any expenditure by them thereunder including interest upon any moneys borrowed for the purposes thereof and any sums necessary to provide for repayment of moneys so borrowed.

(b) The total sums expended and received by the Corporation in connection with the purposes of this section in each year including interest and any sums necessary to provide for the repayment of moneys so borrowed shall be separately shown in the published accounts of the Corporation for that year.

PART III
—cont.

(6) If any person wilfully injures or suffers to be injured any fittings belonging to the Corporation he shall be liable to a penalty not exceeding five pounds and the Corporation may do all such work as is necessary for repairing any injury done and may recover the expenses reasonably incurred by them in so doing from the offender and if the amount does not exceed twenty pounds summarily as a civil debt.

Collection and
recovery of
heating
charges.

14.—(1) The Corporation may from time to time prescribe a scale of charges (in this section referred to as “heating charges”) for heat supplied to premises under the powers of this Part of this Act and for connecting premises to the heating undertaking and (where premises have been disconnected from the said undertaking) for reconnecting premises thereto and where heat is so supplied to any premises the heating charges in accordance with the scale shall be payable by the occupier of those premises except in any case where the owner has agreed with the Corporation to pay the same in which case they shall be payable by the owner.

(2) The heating charges payable by any person may after a demand therefor be recovered from him by the Corporation as a simple contract debt in any court of competent jurisdiction and subject as hereinafter provided where a person fails to pay within seven days after a demand therefor any instalment of a heating charge payable by him in respect of any premises the Corporation may cut off the supply of heat to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the instalment due:

Provided that if before the expiration of the said seven days notice in writing is given to them that there is a dispute as to the amount due in respect of the heating charge or as to the liability to pay the charge they shall not cut off the supply of heat until the dispute has on the application of either party been determined by a court of competent jurisdiction.

Power to enter
premises.

15.—(1) Subject to the provisions of this section any authorised officer of the Corporation shall on producing (if so required) some duly authenticated document showing his authority have a right to enter at all reasonable hours any premises to which the Corporation are supplying or have agreed to supply heat under the powers of this Part of this Act or any premises upon which any fittings have been installed for the purpose of or in connection with supplying heat to any premises as aforesaid for the purpose of—

- (a) examining and inspecting any fittings whether belonging to the Corporation or not and (where such fittings include any meter for measuring heat supplied to any premises) of recording the reading of such meter;

- (b) ascertaining whether there is or has been on or in connection with the premises any contravention of the provisions of this Part of this Act or of any conditions subject to which a supply of heat was agreed to be furnished to any premises ;
- (c) ascertaining whether or not circumstances exist which would authorise the Corporation to take any action or execute any work under this Part of this Act ;
- (d) taking any action or executing any work authorised by this Part of this Act or by any agreement for the supply of heat to be taken or executed by the Corporation :

Provided that except in cases of emergency arising from defects in any fittings admission to any premises shall not be demanded as of right unless twenty-four hours' notice of the intended entry has been given to the occupier :

Provided also that nothing in this section shall authorise any officer of the Corporation without the previous consent in writing of the authority or the electricity board or the gas board (as the case may be) to enter any premises occupied or used by the authority or the electricity board or the gas board in connection with the generation or supply of electricity or the manufacture storage or supply of gas other than offices or showrooms :

Provided further that nothing in this section shall authorise any officer of the Corporation without the previous consent in writing of the commission to enter any premises occupied or used by the commission in connection with their undertaking.

(2) If it is shown to the satisfaction of a justice of the peace on sworn information in writing—

(a) that admission to any premises has been refused or that refusal is apprehended or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that an application for admission would defeat the object of the entry ; and

(b) that there is reasonable ground for entry into the premises for any such purpose as aforesaid ;

the justice may by warrant under his hand authorise the Corporation by any authorised officer to enter the premises if need be by force :

Provided that such a warrant shall not be issued unless the justice is satisfied either that notice of the intention to apply for a warrant has been given to the occupier or that the premises are unoccupied or that the occupier is temporarily absent or that the case is one of urgency or that the giving of such notice would defeat the object of the entry.

(3) An authorised officer entering any premises by virtue of this section or of a warrant issued thereunder may take with him such other persons as may be necessary and on leaving

PART III
—cont.

any unoccupied premises which he has entered by virtue of such a warrant shall leave them as effectually secured against trespassers as he found them.

(4) Every warrant granted under this section shall continue in force until the purpose for which the entry is necessary has been satisfied.

(5) If any person who in compliance with the provisions of this section or of a warrant issued thereunder is admitted into a factory or workplace discloses to any person any information obtained by him in the factory or workplace with regard to any manufacturing process or trade secret he shall unless such disclosure was made in the performance of his duty be liable to a penalty not exceeding one hundred pounds or to imprisonment for a term not exceeding three months.

Interference
with
apparatus &c.

16.—(1) If any person wilfully and without the consent of the Corporation turns on opens closes shuts off or otherwise interferes with any valve cock or other work or apparatus belonging to the Corporation and thereby improperly causes the supply of heat or hot water or steam for the purposes of the heating undertaking to be interfered with he shall be liable to a penalty not exceeding five pounds and (whether proceedings be taken against him in respect of his offence or not) the Corporation may recover from him the amount of any damage sustained by them as a simple contract debt in any court of competent jurisdiction.

(2) If any person wrongfully takes uses or diverts any heat or hot water or steam from any apparatus provided for the purposes of the heating undertaking he shall (without prejudice to any other right or remedy of the Corporation) be liable to a penalty not exceeding five pounds.

Byelaws for
protection
of heating
undertaking.

17.—(1) The Corporation may make byelaws for preventing the waste misuse or contamination of or interference with the circulation of hot water or steam used by them in connection with the supply and use of heat under this Part of this Act or for preventing the waste or undue consumption of heat supplied under this Part of this Act.

(2) Byelaws under this section may include provisions—

(a) prescribing the size nature materials strength and workmanship and the mode of arrangement connection disconnection insulation alteration and repair of the heating fittings to be used ; and

(b) forbidding the use of any heating fittings which are of such a nature or are so arranged or connected as to cause or permit or be likely to cause or permit—

(i) waste misuse or contamination of or interference with the circulation of hot water or steam ;

(ii) reverberation in pipes ; or

(iii) waste or undue consumption of heat.

(3) If any person contravenes the provisions of any byelaw made under this section the Corporation may without prejudice to their right to take proceedings for a penalty in respect of such contravention cause any heating fittings belonging to or used by that person which are not in accordance with the requirements of the byelaws of the Corporation to be altered repaired or replaced and may recover the expenses reasonably incurred by them in so doing from the person in default as a simple contract debt in any court of competent jurisdiction.

(4) Nothing in this section or in any byelaw made thereunder shall apply to any heating fittings used on premises which belong to the commission and are held or used by them for the purposes of their railway so long as those fittings are not of such a nature or so arranged or connected as to cause or permit or be likely to cause or permit—

(a) waste misuse or contamination of or interference with the circulation of hot water or steam ;

(b) reverberation in pipes ; or

(c) waste or undue consumption of heat:

Provided that the exemption conferred by this subsection shall not extend to fittings used in hotels or dwelling-houses or in offices not forming part of a railway station.

(5) In this section the expression “ heating fittings ” includes air heaters water heaters mains pipes taps cocks valves ferrules and other works used in connection with the supply or use of heat by means of hot water or steam.

18.—(1) The Corporation shall give to the authority and the electricity board and the gas board such reports and returns and such information with respect to the heating undertaking as the authority or the electricity board or the gas board may reasonably require and the authority and the gas board shall give to the Corporation such reports and returns and such information with respect to any supply by them of heat by means of hot water or steam as the Corporation may reasonably require.

Reports and returns with respect to heating undertaking and supply of heat.

(2) Any dispute between the Corporation on the one hand and the authority or the electricity board or the gas board on the other hand as to whether any reports returns or information are reasonably required by the authority or the electricity board or the gas board or the Corporation (as the case may be) shall be determined by the Minister of Fuel and Power.

19. The Corporation may require any person desiring to take a supply of heat by means of hot water or steam or to be supplied with fittings or materials under this Part of this Act to deposit with the Corporation such sum as the Corporation may reasonably require as security for the payment of any moneys which may become due from him to the Corporation in respect of such

Power to require deposit as security for payment of accounts.

PART III
—cont.

supply or of any fittings or materials supplied to him in connection therewith:

Provided that if any person is required to deposit with the Corporation any sum as security as aforesaid the Corporation shall pay interest at the rate of five pounds per centum per annum on every sum so deposited for every six months during which the same shall remain in their hands.

Discounts for
prompt
payment.

20. The Corporation may if they think fit make an allowance by way of discount on all sums of money due to them for the supply of heat by means of hot water or steam from any person who pays the same within such time of the demand thereof as the Corporation think fit to prescribe in that behalf and notice to that effect shall (if and so long as the Corporation shall allow such discount) be endorsed on every demand note in respect of such charges:

Provided that the Corporation shall make the same allowance to all persons under similar conditions.

Notice to be
given by
persons
supplied with
heat before
quitting
premises.

21.—(1) If the occupier of any premises supplied with heat by means of hot water or steam by the Corporation quits the premises without giving notice thereof to the Corporation in manner provided by this section he shall be liable to pay to the Corporation all money accruing due for heat supplied by them to the premises and for meter rent up to the next date on which the register of the meter for heating on the premises is usually ascertained or the date from which any subsequent occupier of the premises requires the Corporation to supply heat to the premises whichever first occurs.

(2) The notice to be given under this section by an occupier of premises shall be given in writing and sent by post or otherwise delivered to the Corporation at the municipal buildings so that it is received by the Corporation at least twenty-four hours before he quits the premises.

(3) The foregoing provisions of this section or a statement of the effect thereof shall be endorsed upon every demand note for heat charges payable to the Corporation.

For protection
of undertakers.

22. For the protection of the authority and the electricity board and the gas board and the Birmingham Corporation and the company (each of whom is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

(1) In this section—

the expression "apparatus" means—

(a) as regards the authority and the electricity board the electric lines and works (as respectively defined in the Electric Lighting Act 1882)

belonging to the authority or the electricity board (as the case may be) ;

(b) as regards the gas board and the Birmingham Corporation and the company any mains pipes or other apparatus belonging to the gas board or the Birmingham Corporation or the company (as the case may be) ;

the expression “ authorised work ” means any main service pipe conduit duct or other work laid down placed or executed by the Corporation for the purposes of the heating undertaking in the exercise of the powers of this Part of this Act or any Act incorporated therewith :

- (2) Where the Corporation require to dig or sink any trench for laying down placing or constructing any authorised work near to which any apparatus has been lawfully placed the Corporation shall give to the undertakers to whom such apparatus belongs notice in writing of such requirement together with plans sections and particulars of the authorised work to be laid in such trench and if it should appear to the undertakers that the laying down placing or construction of such authorised work would injure interfere with or endanger any apparatus or interfere with the access thereto or impede the supply of electricity gas or water by means thereof the undertakers may within fourteen days from the receipt of such notice give to the Corporation notice in writing requiring them to alter the position or depth of such apparatus in such manner as may be reasonably necessary for avoiding any such injury interference danger or impediment and any difference as to the necessity for such alteration or the manner of carrying out the alteration shall be determined by arbitration as hereinafter provided All such alterations shall (save as in this section provided) be carried out by and at the expense of the Corporation with as little detriment and inconvenience to the undertakers as the circumstances will admit and to the reasonable satisfaction of the engineer of the undertakers and under his superintendence unless after receiving not less than three days' notice for that purpose (which notice the Corporation are hereby required to give except in cases of emergency) he refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the laying down placing or construction of such work :

PART III
—cont.

- (3) The Corporation in laying down placing or constructing any authorised work shall not interfere with the access to any apparatus to any greater extent than is necessary for the purpose of or in connection with the carrying out of that work and shall not remove or displace any apparatus or do anything to endanger any apparatus or impede the passage of electricity gas or water into or through any apparatus without the consent (which shall not be unreasonably refused) of the undertakers or in any other manner than the undertakers shall reasonably approve nor in the case of apparatus proposed to be removed or displaced until good and sufficient apparatus and other works reasonably necessary or proper for continuing the supply of electricity gas or water as the same was supplied by the apparatus proposed to be removed or displaced shall at the expense of the Corporation have been first made and laid down in lieu thereof and be ready for use to the reasonable satisfaction of the engineer of the undertakers:
- (4) The reasonable expense of all repairs or renewals of—
- (a) any apparatus existing at the time of the laying down placing or construction of the authorised work ; or
 - (b) any apparatus substituted for such existing apparatus or any part thereof and being of reasonably similar size and type ;
- which may at any time hereafter be rendered reasonably necessary by reason of—
- (i) the acts or defaults of the Corporation their contractors agents workmen or servants or any person in the employ of them or any of them in the exercise of the powers of this Part of this Act ; or
 - (ii) any subsidence resulting from the laying down placing construction or removal of any authorised work whether during the laying down placing construction or removal of the authorised work or at any time within two years thereafter ;
- shall be borne and paid by the Corporation:
- (5) The Corporation in laying down placing constructing or removing any authorised work shall make good all damage done by them to any apparatus and shall make compensation to the undertakers for any loss damage costs or expenses which they may sustain by reason of any interference with such apparatus or the access thereto or with the private service or supply lines or pipes of any person supplied by the undertakers with electricity gas or water:

(6) If the undertakers shall desire—

(a) to alter the position or depth of any apparatus under paragraph (2) of this section and shall within the period of fourteen days referred to in that paragraph give not less than seven days' notice in writing thereof to the Corporation ; or

(b) to provide any apparatus in lieu of any apparatus proposed to be removed or displaced under paragraph (3) of this section and shall within the period of fourteen days from the date of the giving of their consent under that paragraph or (as the case may be) from the date of a determination that such consent is unreasonably refused give not less than seven days' notice thereof to the Corporation ; or

(c) to make good any damage under paragraph (5) of this section ;

the undertakers may themselves carry out any of the said works or (as the case may be) make good such damage and shall commence execute and complete the same with all reasonable dispatch and to the reasonable satisfaction of the Corporation and all reasonable expenses properly incurred by them under this paragraph shall be repaid to them by the Corporation :

(7) Except with the consent of the company it shall not be lawful for any authorised work provided or used by the Corporation for the storage transmission distribution and use of heat supplied by them to any premises to be connected with any apparatus provided or used for the storage transmission distribution and use of water supplied to the same premises by the company in such manner as to permit the flow of water through such connection Any person committing a breach of this provision shall be subject to a penalty not exceeding five pounds :

(8) All water supplied by the company to the Corporation for the purposes of this Part of this Act shall be taken by measure and paid for accordingly :

(9) If any difference shall arise between the Corporation and the undertakers or their respective engineers with respect to any matter under this section the matter in difference shall be referred to an arbitrator :

(10) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the undertakers may be under in respect of their apparatus and any duties or obligations which the Corporation may be under in respect of the authorised work and may if he thinks fit require the Corporation

PART III
—cont.

to execute any temporary or other works so as to avoid as far as may be reasonably possible interference with any purpose for which the apparatus is used.

Corporation not to be exempted from proceedings for nuisance.

23. Nothing in this Part of this Act shall exonerate the Corporation from any indictment action or other proceedings for nuisance in the event of any nuisance being caused or permitted by them.

Financial provisions.

24. For the purposes of section 103 (Application of revenue and payment of expenses of undertakings) of the Act of 1929 the heating undertaking shall be one of the undertakings of the Corporation.

Application of certain Acts to heating undertaking.
7 & 8 Geo. 6.
c. 47.

25.—(1) The provisions of the Town and Country Planning Acts 1944 and 1947 shall where applicable apply to the heating undertaking as if that undertaking were a statutory undertaking and as if the Minister were the “appropriate Minister” within the meaning of section 119 of the Town and Country Planning Act 1947.

12 & 13 Geo. 6.
c. 32.

(2) For the purposes of section 4 of the Special Roads Act 1949 the Corporation in relation to the powers conferred upon them by this Part of this Act shall be deemed to be statutory undertakers.

Supply to houses provided by Smethwick Corporation.
26 Geo. 5. &
1 Edw. 8.
c. 51.

26.—(1) Where the Smethwick Corporation have provided or propose to provide within the borough any houses or other buildings in pursuance of the powers to provide housing accommodation conferred by Part V of the Housing Act 1936 the Corporation shall (subject as hereinafter in this section provided and notwithstanding anything in this Part of this Act to the contrary) upon being requested to do so by the Smethwick Corporation give and continue to give a supply of heat to any such houses or other buildings as are or are intended to be situated within one hundred feet from any main of the Corporation through which the Corporation are for the time being supplying heat subject to such terms and conditions and in accordance with such charges as may be agreed between the Corporation and the Smethwick Corporation or in default of such agreement as may be determined by the Minister.

(2) The Corporation shall only be requested to give a supply of heat to such houses or other buildings as aforesaid if it is reasonable and practicable to do so and if the giving of the supply is not likely to interfere with the supply of heat which the Corporation are affording on the receipt of such request.

(3) Any dispute between the Corporation and the Smethwick Corporation under subsection (2) of this section shall be determined by the Minister.

27. Nothing in this Part of this Act shall be deemed to constitute the Corporation water undertakers within the meaning of the Water Act 1945 except for the purpose of section 11 (Power to lay mains &c. and break open streets) of this Act.

PART III
—cont.

Corporation
not to be
water under-
takers.

PART IV

STREETS BUILDINGS SEWERS AND DRAINS

28.—(1) Where plans and sections of a new street have been deposited with and approved by the Corporation no person except with their consent shall in such street commence to erect any new building or to excavate for the foundation thereof until he has defined by posts or in some other suitable manner the approved line width and level of so much of the street as abuts upon or adjoins the land on which the building is to be erected or any land which will be occupied in connection with that building and it shall not be lawful for any person to erect the building or any fence nearer to the centre of the street than any posts or other marks by which the width of the street has been defined.

No building
allowed until
street defined.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

29.—(1) At any time within one month after the deposit of the plans of any new building intended or adapted for use as a house (or where such plans have been approved but the erection of the building has not been begun before the passing of this Act at any time before the erection thereof has been commenced) the Corporation may by notice require the provision either before the building is erected or before it is sold let or occupied (as the Corporation shall specify) of sufficient means of communication between the building and a street which is either a highway repairable by the inhabitants at large or has been laid out and constructed in accordance with the byelaws or other provisions for the time being in force with respect to new streets.

Means of
access to
buildings.

(2) If it appears to the Corporation to be necessary that the means of communication to be provided under this section shall be in the form of a street the Corporation may by their notice require a new street to be laid out and if the construction of such means of communication appears to them necessary they may by their notice require constructional work in connection with such means of communication not exceeding that required for a new street by the byelaws or other provisions in force with respect to the construction of new streets.

(3) Where notice of a requirement under this section has been given by the Corporation to any person such person shall not begin to erect or proceed with the erection of any building to

PART IV
—cont.

which the notice relates nor sell let or occupy such building (as the notice shall specify) until the notice of the Corporation has been complied with or until security has been given to the satisfaction of the Corporation that the notice will be complied with.

(4) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

Rounding of
corners at
street
junctions.
7 Edw. 7.
c. 53.

30. The powers conferred upon the Corporation by section 17 of the Public Health Acts Amendment Act 1907 to vary the intended position of a new street so far as is necessary for the purpose of securing more direct easier or more convenient means of communication with any other street or intended street shall be extended so as to enable them (subject to the provisions of that section) to require that the corners formed at the junction of a new street with another street (whether new or existing) shall for the purposes of safety either (i) be splayed off and the kerb line of the street rounded off so as to be coincident with the arc of a circle tangential to the adjacent kerb lines of the two streets and having such radius as may be determined by the Corporation or (ii) be laid out in such other manner as the Corporation may reasonably require.

Power to vary
width of
carriageways
and footways.

31.—(1) The Corporation may if they think fit in any case vary the relative widths of the carriageway and footway or footways in any street repairable by the inhabitants at large:

Provided that twenty-one days before commencing any work under this section which will materially reduce the width of any carriageway or footway the Corporation shall send notice of the proposed work to the Minister of Transport.

(2) The Corporation shall not exercise the powers of this section in relation to any—

(a) county road without the consent of the county council;
or

(b) trunk road without the consent of the Minister of Transport.

(3) The Corporation shall not exercise the powers of this section in respect of so much of any street as is situate upon a bridge over any railway canal or inland navigation or upon the approaches to any such bridge without the previous consent in writing of the railway canal or inland navigation undertakers:

Provided that such consent shall not be unreasonably withheld and any question as to whether or not such consent is unreasonably withheld shall be determined by the Minister of Transport.

32.—(1) Subject to the provisions of this section a court of summary jurisdiction if satisfied on the application of the Corporation made with the consent of the local planning authority for the district in which the highway is situate that a highway within the borough is unnecessary may by order authorise the stopping up thereof and if so satisfied that a highway within the borough can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted:

Stopping up
and diversion
of highways.

Provided that the Corporation shall not make an application under this section in regard to a county road without the consent of the county council which shall not be unreasonably withheld and any question as to whether such consent is unreasonably withheld shall be determined by the Minister of Transport.

(2) Any such application or order may be made with respect to any length of a highway and in the subsequent provisions of this section any reference to a highway shall be construed as a reference to that length thereof to which the application or order relates:

(3) No order shall be made under subsection (1) of this section unless the court is satisfied that notice of the intention to make the application specifying the time and place at which it is to be made and the order which will be asked for and embodying a plan showing what will be the effect of the order asked for—

- (a) has at least twenty-eight days before the date on which the application is made been served on the owners or reputed owners and the occupiers of all land abutting on the highway whose addresses can with reasonable diligence be ascertained and (when the application relates to a classified road as defined in the Local Government Act 1929) on the Minister of Transport and the county council; and
- (b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as are reasonably sufficient for notifying persons using the highway of the application;

19 & 20 Geo. 5.
c. 17.

and that a similar notice (except that there may be substituted for the plan a statement of the place where such a plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

A notice which is required by this subsection to be served and which is sent by post shall be sent by registered post.

(4) On the hearing of such an application the Corporation and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard and an appeal against the decision

PART IV
—cont.

of the court may be brought to quarter sessions either by the Corporation or by any such person as aforesaid who was or claimed to be heard by the court.

42 & 43 Vict.
c. 49.
23 & 24 Geo. 5.
c. 38.

(5) For the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

(a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order ;

(b) in a case where more than two persons were heard or claimed to be heard in opposition to an application under this section it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk to the court of summary jurisdiction but any of those persons whether served with such a notice or not may appear at quarter sessions as respondents to the appeal ;

(c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a re-hearing.

(6) Every order made under this section shall have annexed thereto a plan signed by the chairman of the court and shall be binding on all persons whatsoever.

(7) (a) Nothing in this section shall authorise the diversion of any highway over any land unless the written consent of the local planning authority for the district in which that land is situate and of every person having a legal interest in that land is produced to and deposited with the court.

(b) An order under this section authorising the diversion of a highway shall not authorise the stopping up of any part thereof until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace for the county.

(8) Where an order is made by a court of summary jurisdiction under this section authorising the stopping up or diversion of a highway, the clerk of the court shall forthwith transmit the order to the said clerk of the peace together if the order be for diverting a highway with the written consents produced to the court and the said clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (7) of this section among the records of the quarter sessions.

(9) Where any highway is diverted in accordance with an order made under this section the substituted highway shall be

repairable by the person (if any) by whom the original highway was repairable;

PART IV
—cont.

Provided that the owner of any land shall not be required to maintain so much of a highway as is diverted from his land.

(10) Any application or order under this section—

(a) may include two or more highways which are connected with each other;

(b) may relate to the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle way or footway.

(11) The Corporation and the owner of or other person interested in any land affected by the exercise of the powers of this section may enter into and fulfil agreements relative thereto and to the payment of any expenses incurred by the Corporation in or in consequence of the exercise of those powers.

(12) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

(13) The powers of this section shall not be exercisable with respect to any trunk road.

33.—(1) Where any highway or portion of a highway is stopped up in pursuance of an order made under section 32 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or portion of a highway at the time of stopping up:—

For protection
of Postmaster-
General.

(a) the power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or portion of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be;

(b) the Postmaster-General may by notice to the Corporation in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;

PART IV
—cont.

- (c) the Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require ;
- (d) where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1943 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any portion of any highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

(3) If in relation to any works authorised by section 30 (Rounding of corners at street junctions) or by section 31 (Power to vary width of carriageways and footways) of this Act (which said sections are hereinafter called "the specified sections") the Corporation require an alteration either temporarily or permanently in any telegraphic line belonging to or used by the Postmaster-General the enactments numbered (1) to (8) in section 7 of the Telegraph Act 1878 shall apply with respect to such alteration.

(4) If in consequence of the exercise or intended exercise by the Corporation of any of the powers conferred on them by the specified sections the Postmaster-General considers it necessary or expedient that an alteration should be made in any telegraphic line belonging to or used by him and placed in any street affected by the exercise or intended exercise by the Corporation of any of the said powers the Postmaster-General may himself make such alteration in such telegraphic line as he deems necessary or expedient and the Corporation shall pay to the Postmaster-General all the expenses incurred by him in respect of such alteration and the amount of any loss or damage sustained by him in consequence thereof :

Provided that—

- (a) before making such alteration the Postmaster-General shall give a notice to the Corporation containing particulars of the telegraphic line to be altered and the nature of the alteration he intends to make ;

(b) the Corporation may within fourteen days of the receipt of the notice give to the Postmaster-General a notice objecting to the alteration on the ground that it is unnecessary or unreasonable and thereupon a difference shall be deemed to have arisen and sections 4 and 5 of the Telegraph Act 1878 shall apply accordingly and the tribunal by which the difference is determined may make such order as it thinks just as to the alteration (if any) to be made in the telegraphic line and as to the manner in which the proposed work of the Corporation is to be carried out.

(5) In this section the expression "alteration" has the same meaning as in the Telegraph Act 1878.

34.—(1) If not less than three months before commencing any work involving the closing to vehicular traffic of any street or part of a street in the borough either absolutely or to the extent of one-third or more of the width of the carriageway thereof the Corporation shall give notice of their intention to execute such work to all statutory undertakers having powers to break up that street then when such work has been executed by the Corporation it shall not be lawful for any such undertakers within twelve months of the completion of such work to break up the street or part of a street so closed without the consent of the Corporation which consent shall not be unreasonably withheld and the Corporation may if they think fit and without prejudice to their other rights and powers attach to any consent given under this section such conditions as may be reasonable with respect to the times at which and the period within which the work of the undertakers shall be executed and completed:

Restrictions
on rights of
breaking up
streets.

Provided that as respects any work executed by any undertakers which but for the provisions of this section would have been lawfully executed nothing in this section shall deprive such undertakers of any right or immunity as between themselves and any person other than the Corporation to which but for the said provisions such undertakers would have been entitled in respect of such work.

(2) Any dispute or difference which may arise between the Corporation and any undertakers under the provisions of the preceding subsection shall be referred to arbitration.

(3) Nothing in this section shall prevent any such undertakers as aforesaid from carrying out extending or enlarging works in any street in case of emergency or prevent any such undertakers from carrying out any works necessary to enable them to perform their statutory duties as such undertakers or their obligations under any contract subsisting at the date of the

PART IV
—cont.

giving of the notice by the Corporation in default of which they would be liable to any penalty or damages or from making altering repairing extending enlarging or disconnecting communication pipes or service connections or laying service lines between premises and distributing mains or altering repairing extending enlarging or disconnecting any service line or from laying mains or pipes for the supply of property not previously supplied with gas water or electricity as the case may be.

62 & 63 Vict.
c. 19.

In this subsection the expression "service line" has the meaning assigned thereto by the schedule to the Electric Lighting (Clauses) Act 1899.

Streets broken
up to be
reinstated.

35.—(1) When any street of which the functions of maintenance repair and improvement are undertaken by the Corporation whether by delegation from the county council or otherwise shall be opened or broken up by any person he shall with all convenient speed complete the work on account of which the same shall have been broken up and fill in the ground and reinstate and make good to the reasonable satisfaction of the surveyor and with materials to be reasonably approved by him the street so opened or broken up:

Provided that if the Corporation give notice to such person before he commences to reinstate and make good such street the Corporation may themselves reinstate and make good the street so opened or broken up and may recover the cost reasonably incurred by them in so doing from such person.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

As to evasion
by owners
of private
street works
expenses.**36. If—**

- (a) any owner of land fronting adjoining or abutting on a street within the meaning of the Act of 1892 and situate in the borough conveys sells leases or otherwise disposes of the part or any portion of the part of that land which fronts adjoins or abuts on that street; and
- (b) any expenses of works executed by the Corporation under the Act of 1892 in or in relation to that street are apportioned on such part or portion of that land; and
- (c) the Corporation are unable to recover such expenses in whole or in part from the person to whom such part or portion of that land was conveyed sold leased or disposed of or by the sale of such part or portion of that land; and

(d) a court of summary jurisdiction is satisfied that such conveyance sale lease or disposal was intended for the purpose of evading the payment of any expenses under the Act of 1892 ;

then such expenses or so much thereof as has not been recovered by the Corporation may to such extent as the court may determine be recovered from that owner and shall be charged upon the premises in the same manner as expenses of the execution of works under the Act of 1892 may be recovered and are charged upon the premises as though he had not made such conveyance sale lease or disposal and as though the said amount of the said expenses had been apportioned on the land of that owner which before such conveyance sale lease or disposal was made fronted adjoined or abutted on such street.

37.—(1) In any street not being a highway repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves defray the cost of the repairs out of the general rate fund: Urgent repairs of private streets.

Provided that the cost of the repairs executed in any street in any year under this section shall not exceed ten pounds for each one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under any statutory provision for the time being in force in the borough relating to private street works or private improvement expenses or under section 19 of the Public Health Acts Amendment Act 1907.

38.—(1) Where the owner or occupier of any premises fronting or abutting on any street repairable by the inhabitants at large habitually uses or permits to be used any kerbed footway or paved footway in such street as a crossing for any horse or horse-drawn or mechanically propelled vehicle (other than a motor-cycle) in passing to and from such premises the Corporation may either— Crossings over footways.

(a) require the construction across such footway of a carriage-crossing for the purpose aforesaid constructed of such materials and in such manner as they may prescribe ; or

(b) allow the use of the footway for the purpose aforesaid subject to the condition that the footway is strengthened or adapted in such manner as the Corporation may prescribe or subject to such other reasonable conditions (if any) as they may impose.

(2) If the Corporation require the construction of any carriage-crossing across the footway or allow the use of the footway subject to a condition that it is strengthened or adapted they may

PART IV
—cont.

execute such works as may be necessary to secure compliance with such requirement or condition and may recover the expenses of so doing from the owner or occupier.

(3) Notwithstanding the provisions of section 18 of the Public Health Acts Amendment Act 1907 every person desirous of forming a carriage-crossing across a footway in any street or of strengthening or adapting any part of any such footway as a carriage-crossing shall apply in writing to the Corporation for an estimate of the cost thereof and after having obtained such estimate may deposit with the Corporation the amount thereof. When such deposit shall have been made the Corporation shall with all convenient speed carry out the works and any difference between the sum so deposited and the actual cost of the works shall be paid to or by the Corporation by or to such person as the case may require.

(4) Nothing in this section shall impose on the owner or occupier any obligation to maintain any crossing constructed or footway strengthened or adapted in pursuance of a requirement of or condition imposed by the Corporation under this section.

(5) Before requiring the construction of any carriage-crossing across the footway of a trunk road or of a county road or allowing the use of such a footway subject to any condition the Corporation shall obtain in the case of a trunk road the consent of the Minister of Transport and in the case of a county road the consent of the county council.

Power to lay
out grass
margins &c.
in streets.

39. The Corporation may lay out with grass margins or plant with trees or lay out as gardens any part of any street repairable by the inhabitants at large and may erect guards or fences for the protection of such grass margins trees or gardens and the Corporation may maintain in good order any grass margins trees gardens guards and fences in any such street and alter or renew the same and may add to the carriageway or footway of any such street any part of such grass margins parts planted with trees or parts laid out as gardens as aforesaid and may alter or re-arrange the parts of any street laid out as carriageway or footway respectively:

Provided that—

- (1) nothing in this section shall empower the Corporation to prevent any person residing in or the occupier of any premises in or abutting on any such street having full and free right and liberty of access to and from such premises from and to the metalled or paved portion of such street;
- (2) for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the

execution of an undertaking authorised by Act of Parliament and the Corporation shall be deemed to be the undertakers ;

- (3) the powers of this section shall not be exercised with reference to any trunk road without the consent of the Minister of Transport.

40. The Corporation may provide and maintain in any street Power to
repairable by the inhabitants at large tubs for trees or plants: provide tubs
for trees &c.
Provided that this power shall not be exercised—

- (1) so as to hinder the reasonable use of the street by any person entitled to use the same or so as to become a nuisance or injurious to the owner or occupier of the land adjacent to the street ; or
- (2) in respect of a trunk road except with the consent of the Minister of Transport.

41. The Corporation when carrying out in any street or in Planting of
any part thereof any works under the Act of 1892 may with the trees in streets.
consent in writing of a majority in number and rateable value of the owners of houses and land in such street or such part thereof cause trees or shrubs to be planted and grass margins to be laid out in such street or such part thereof and erect guards or fences and otherwise do everything expedient for the protection of such trees shrubs and grass margins and any expense incurred by the Corporation under this section shall be deemed part of the expenses of carrying out the said works :

Provided that—

- (1) no such tree shrub grass margin guard or fence shall be placed or laid out in such a situation as to hinder the reasonable use of the highway by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land and premises adjacent to the said street ;
- (2) for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the execution of an undertaking authorised by Act of Parliament and the Corporation shall be deemed to be the undertakers.

42.—(1) In any case in which the forecourt of any premises Fencing of
adjoining a street or any steps or projection placed in any such forecourts.
forecourt is or are a source of danger obstruction or inconvenience to the public the Corporation may require the owner of the premises well and sufficiently to fence such forecourt from the street.

PART IV
—cont.

(2) Any person who contravenes a requirement under this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Provisions
as to
forecourts.

43.—(1) If the council shall by resolution determine that any stall structure or other erection (not being an advertisement to which regulations made in pursuance of section 31 of the Town and Country Planning Act 1947 for the time being apply) on any forecourt is by reason of its character injurious to the amenities of the street in which such forecourt is situate they may by notice require the owner of or person responsible for such stall structure or other erection within such period (not being less than seven days) as may be specified in the notice to make such alterations to such stall structure or other erection as may be necessary to prevent the same from being injurious to the amenities of such street.

(2) Any person who contravenes a requirement of any such notice shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

As to pave-
ment lights.

44.—(1) It shall be lawful for the owner or occupier of any property with the consent of the Corporation to construct in any pavement forming part of any street any means (in this section referred to as “pavement lights”) for the admission of light or air through such pavement to any room or premises situate under or adjoining the same.

(2) In giving their consent to the construction of any pavement lights the Corporation may attach thereto such terms and conditions as they may think fit.

(3) Any agreements entered into by the Corporation with any person prior to the passing of this Act which would have been valid under the provisions of this section if made after the passing thereof are hereby confirmed.

Direction
signs.

45.—(1) The Corporation may cause to be put up or painted on a conspicuous part of any house building or place at or near to the corner of any street signs indicating the classified road number of such street and the direction or the distance to towns railway stations public buildings and other places of a public character.

(2) Before putting up or painting a sign on a house building or place the Corporation shall give to the owner of such house building or place notice of their decision so to do.

(3) Any person who shall wilfully and without the consent of the Corporation obliterate deface obscure remove or alter any such sign otherwise than in the course of demolishing or altering

the house or building shall be liable to a penalty not exceeding forty shillings and the Corporation may recover the expenses of replacement and making good from such person.

PART IV
—cont.

(4) The exercise of the powers conferred by this section with respect to traffic signs shall be subject to the provisions of the Road Traffic Acts 1930 to 1947 and to any regulations made or any general or other directions given by the Minister of Transport in pursuance of the said provisions.

(5) In this section the expression "traffic sign" has the meaning assigned thereto by section 48 of the Road Traffic Act 1930.

46.—(1) Any person erecting setting up or placing any blind shade covering or awning over any footway shall so erect set up or place the same that no part thereof shall project over any part of the footway which is less than one foot six inches from the outer edge of the kerb of such footway. Window blinds &c.

(2) Every such blind shade covering or awning shall be constructed and maintained so as to secure in accordance with the requirements of the Corporation the safety and convenience of the public.

(3) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

47. For the purpose of preventing danger to pedestrians from traffic the Corporation may as respects roads (not being highways repairable by the inhabitants at large) adjacent to the entrances to or exits from any schools Sunday schools public baths public parks public halls recreation grounds playing fields alleyways and passageways exercise the like powers of placing fences rails and posts on the sides of any footways or carriage-ways of such roads as under section 149 of the Public Health Act 1875 are exercisable by them as respects roads so repairable and the Corporation may from time to time repair renew maintain or remove any fences rails or posts so placed by them. Power to place fences near school entrances &c.

48.—(1) In this section "neglected site" means the site of a demolished building in the borough which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood. As to neglected sites.

(2) A court of summary jurisdiction on complaint of the Corporation may order the owner of any neglected site to remove any material or rubbish resulting from the demolition of the building within a reasonable time to be fixed by the order.

(3) If the order is not obeyed within the time thereby prescribed the Corporation at any time after the expiration of

PART IV
—cont.

such time may enter upon the neglected site and execute the order and may sell or dispose of any material or rubbish found on the neglected site.

(4) Where the Corporation sell any rubbish under this section they shall pay the proceeds to the person to whom the rubbish belonged after deducting the amount of any expenses incurred by them in connection with the removal of the rubbish.

(5) All expenses incurred by the Corporation under subsection (3) of this section may be recovered by the Corporation from the owner of the neglected site.

Height of
chimneys.

49.—(1) Every chimney erected in the borough after the passing of this Act for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any buildings used for manufacturing or other purposes shall within such time as may be specified in that behalf in a notice given by the Corporation to the owner of such chimney be raised to such height measured from the level of the centre of the street nearest thereto as the Corporation shall reasonably require having regard to the use of such chimney the position of houses or other buildings near thereto the character of such buildings the levels of the neighbouring ground and any other condition requisite for consideration in determining such height and the Corporation may if they think fit contribute towards the cost of raising the chimney to comply with any such requirement.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) Nothing in this section shall extend or apply to any building (not being a house or building used as offices other than a building so used which forms part of a railway station) belonging to or used by the commission in the exercise of their statutory powers so long as such building is used or held by the commission for the purposes of their undertaking.

Power to order
alteration of
chimneys.

50. It shall be lawful for a court of summary jurisdiction upon complaint by the Corporation in pursuance of a report by the medical officer or the sanitary inspector that any smoke gas or vapour from any chimney flue or pipe of a building or structure forming part of or within the curtilage of a dwelling-house in the borough is a nuisance to any of the inhabitants of the borough to make an order requiring the owner of such chimney flue or pipe within such time as shall be specified in such order to cause the same to be raised or such other means for preventing or mitigating such nuisance to be adopted as may seem fitting to such court and as shall not involve an expenditure exceeding

fifty pounds and any such owner as aforesaid who contravenes such order shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

PART IV
—cont.

51.—(1) In exercising any powers of entry upon and inspection of any building or works in course of construction or repair the surveyor or the medical officer or the sanitary inspector or their assistants shall have from the builder or contractor for such building or works free of expense all reasonable use and assistance of ladders scaffolding and plant in and about such building or works. Powers on inspection.

(2) Any person who shall refuse such use and assistance as aforesaid or shall obstruct the surveyor the medical officer the sanitary inspector or their assistants in the use of such ladders scaffolding and plant as aforesaid shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

52.—(1) Where the council resolve to construct a sewer in a street or part of a street repairable by the inhabitants at large which has not been previously sewered and the resolution states that the construction of the sewer will in the opinion of the Corporation increase the value of premises fronting adjoining or abutting on such street or part of a street then subject to the provisions of section 54 (Provisions applicable to the last two preceding sections) of this Act the expenses incurred by the Corporation in constructing the sewer so far as they do not exceed the sum authorised by the said section shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street or part of a street according to the frontages of the respective premises as existing at the date when the resolution becomes operative. Apportionment to frontagers of expenses of sewer constructed under public highway.

(2) Such resolution as aforesaid shall not become operative unless and until notice thereof has been published twice in a local newspaper circulating in the borough but shall become operative as from the date of such publication.

Copies of the newspaper containing the notice shall be sufficient evidence of the publication thereof.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

53.—(1) Where the Corporation have incurred expenses in constructing after the passing of this Act a length of sewer in land and that land has subsequently become a street (whether repairable by the inhabitants at large or not) then subject to the provisions of the next succeeding section the expenses so incurred so far as they do not exceed the sum authorised by that section Apportionment to frontagers of expenses of construction of sewer before land became a street.

PART IV
—cont.

shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street according to the frontages of the respective premises.

(2) Where on the construction of the length of sewer compensation became due to the owner of any land in which the length of sewer was constructed in respect of the damage he sustained by reason of such construction and any sum was set off against such compensation on account of the value of the land belonging to such owner having been enhanced by the construction of the length of sewer this section shall not apply to the length of sewer or to such part thereof as was constructed in such land as aforesaid.

(3) Nothing in this section shall authorise the apportionment of any sum on any land in contravention of any agreement between the Corporation and the owner of the land.

Provisions
applicable to
the last two
preceding
sections.

54.—(1) The sum apportionable under either of the last two preceding sections shall not exceed the sum certified by the surveyor to be at the time the average cost per lineal yard of providing a sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

(2) As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice of the sums respectively apportioned to them and the notice shall state the right of appeal hereinafter conferred.

(3) Any owner on whose premises any sum has been apportioned shall be entitled within fourteen days of the service upon him of such notice as aforesaid to appeal to a court of summary jurisdiction against the amount of the sum so apportioned and may on such appeal dispute the correctness of the surveyor's certificate.

If the court finds that the certificate of the surveyor is erroneous the court shall order the revision of the sums apportioned not only to the appellant but also to the owners of the other premises affected.

(4) Whenever a new building (other than a building not requiring a foul water drainage system) is erected on any premises fronting adjoining or abutting on the street or part of the street after the date on which the resolution became operative or the street was laid out (as the case may be) the sum apportioned on those premises shall be recoverable to an extent proportional to the frontage on the street or part of the street of the site of and the land occupied with the new building:

Provided that where the drains of such new building are at the time of its erection made to connect with a sewer other than

the sewer the expenses of the construction of which are apportioned no sum shall be recoverable in respect of the building unless and until the drains thereof are connected with the last-mentioned sewer.

PART IV
—cont.

For the purposes of this subsection—

(a) a building shall be deemed to be a new building erected after the date in question unless the erection of the building was completed before that date;

(b) the erection of a new building shall be deemed to include—

(i) the re-erection wholly or partially of any building of which an outer wall is pulled down otherwise than in consequence of fire or other accident to such a distance that the part of that wall remaining (if any) is less than half the previous height of the building the height being measured from the ground level to the highest point of the building;

(ii) the conversion into a dwelling-house of any building not originally constructed for human habitation;

(iii) the conversion of any premises into a factory workshop shop or place of public resort;

(iv) any extension by reason whereof the area occupied by the site of the building will with any previous extension made since the date on which the resolution became operative or the street was laid out (as the case may be) be increased by an area equal to more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date.

(5) The sum apportioned on any premises shall notwithstanding that no part thereof is immediately recoverable be treated as a local land charge for the purposes of the Land Charges Act 15 & 16 Geo. 5. 1925 and where part thereof has become recoverable the balance c. 22. shall be so treated.

(6) No interest shall be chargeable on any apportioned sum or any part thereof until it becomes recoverable.

(7) Where such a resolution as is mentioned in section 52 (Apportionment to frontagers of expenses of sewer constructed under public highway) of this Act has been passed but the construction of the sewer to which it relates has not been completed within two years from the date when the resolution became operative all liabilities of frontagers consequent thereon shall cease to have effect.

PART IV
—cont.

(8) If any person from whom an apportioned sum or any part thereof becomes recoverable proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum so recoverable is payable the amount recoverable is disproportionate to the benefit accruing to the premises the Corporation or on appeal a court of summary jurisdiction may remit such part of that sum as they may think just but in such case if another new building is subsequently erected on the land occupied with the first-mentioned building the sum remitted or such part thereof as is proportional to the frontage of the site of and land occupied with that other building shall become recoverable.

(9) Where under this section any sum becomes recoverable in respect of any premises that sum together with interest from the date of service of a demand therefor may be recovered either as a simple contract debt in any court of competent jurisdiction or if the amount does not exceed twenty pounds summarily as a civil debt by the Corporation from the person who is the owner of the premises at the date when a demand for payment is served and as from that date that sum and interest accrued due thereon shall until recovered be a charge on the premises and on all estates and interests therein.

As to evasion
by owners
of sewerage
expenses.

55. If on a complaint by the Corporation to a court of summary jurisdiction it is proved to the satisfaction of the court—

- (i) that the owner of any land has conveyed sold leased or otherwise disposed of a portion of the land ; and
- (ii) that by reason of such disposition any part of the land has ceased to be or has not become land fronting adjoining or abutting on a street within the meaning of section 52 (Apportionment to frontagers of expenses of sewer constructed under public highway) of this Act or as the case may be of section 53 (Apportionment to frontagers of expenses of construction of sewer before land became a street) of this Act ; and
- (iii) that the disposal of such portion of the land was effected with the intention and for the purpose of the evasion of the payment of expenses under the sections in question ;

then the court shall order that such expenses shall be apportioned on the land which immediately before the date of such conveyance sale lease or disposal included the land so conveyed sold leased or disposed of and thereafter such expenses may be recovered from the owner of any part of that land on which a new building within the meaning of the last preceding section of this Act is erected and shall be a charge on any such part of that land and on all estates and interests therein to the same

extent and in the same manner as any sum apportioned under either of the said sections 52 and 53 of this Act may be recovered and is charged on the premises under the said last preceding section of this Act.

PART IV
—cont.

56. The powers of section 48 of the Act of 1936 may be exercised in pursuance of any general or special directions given by the Corporation in any case where it appears to the surveyor the medical officer or the sanitary inspector that there are reasonable grounds for believing that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance or that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water.

Further power
to examine
and test
drains &c.
believed to
be defective.

PART V

INFECTIOUS DISEASE SANITARY PROVISIONS AND NUISANCES

57.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from a notifiable disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the existence of such illness furnish such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.

Information
to be furnished
in case of
notifiable
disease.

(2) Any occupier refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding forty shillings.

58.—(1) As from the commencement of this section no person of or exceeding the age of sixteen years who has the custody charge or care of a child—

Restrictions
on attendance
at schools
and places of
assembly.

(a) who to that person's knowledge is or has been attending any school or any part thereof which for the time being is closed by order of the local education authority or of any committee or body to whom powers of that authority are delegated with the view of preventing the spread of a disease to which this section applies; or

(b) who to that person's knowledge is suffering from a disease to which this section applies; or

(c) who to that person's knowledge with the view of preventing the spread of a disease to which this section applies has been prohibited from attending school by the medical officer or school medical officer;

shall permit such child to attend any Sunday school or day school or place of public entertainment or assembly without having procured from the medical officer or school medical

PART V
—cont.

officer or the medical practitioner attending the child a certificate (which if granted shall be granted free of charge upon application) that in his opinion such child may attend such Sunday school or day school or place of public entertainment or assembly without undue risk of communicating disease to others.

(2) The diseases to which this section applies are notifiable diseases and any other disease which the Minister by regulation made under section 143 of the Act of 1936 declares to be a notifiable disease.

(3) In this section the expression "day school" means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

(4) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding forty shillings.

Power to
close schools
and exclude
children from
entertainments.

59.—(1) If the Corporation or any committee of the council acting on the advice of the medical officer with the view of preventing the spread of a disease to which this section applies require the closing of any Sunday school or day school or any department thereof or the exclusion of certain children therefrom for a specified time or the exclusion of children from places of public entertainment or assembly for a specified time such requirement shall be at once complied with.

(2) Any person responsible for the conduct or management of any Sunday school or day school or any department thereof or place of public entertainment or assembly wilfully failing to comply with any such requirement shall for every such failure be liable to a penalty not exceeding five pounds.

(3) The diseases to which this section applies are notifiable diseases and any other disease which the Minister by regulation made under section 143 of the Act of 1936 declares to be a notifiable disease.

(4) In this section the expression "day school" means a school (not being a school provided by a local education authority) at which some or all of the children are not boarders but the provisions of this section shall not apply to the attendance at a day school of children who are boarders at that school.

Compensation
to persons
for ceasing
employment
to prevent
spread of
disease.

60. If any person at the request in writing of the Corporation or the medical officer stops his employment for the purpose of preventing the spread of a notifiable disease or of a milk-borne disease as defined in section 37 of the Food and Drugs Act 1938 or of food poisoning the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

61. If the medical officer has reasonable cause to believe that in any premises there is a person who is suffering or who has recently suffered from a notifiable disease he may on obtaining a warrant from a justice of the peace which such justice is hereby authorised to grant enter such premises and examine any person found therein with a view to ascertaining whether he is suffering or has recently suffered from such disease:

PART V
—cont.

Provided that the medical officer shall not under the powers of this section—

- (a) enter any premises except between the hours of seven in the morning and ten in the evening; or
- (b) examine a person who is already under the treatment of a medical practitioner except with the consent of the latter.

62.—(1) No dealer shall—

- (a) prepare for sale;
- (b) sell or offer for sale; or

Prohibition
on sale of
verminous
articles.

(c) deposit for the purpose of sale or preparation for sale; any furniture mattress bed-linen clothing or similar article (in this section called “article”) if the same is to his knowledge infested with bugs or other vermin or if by taking reasonable precautions he could have known the same to be so infested.

(2) If a person contravenes the provisions of this section he shall be liable to a penalty not exceeding five pounds and the Corporation upon a certificate of the medical officer or the sanitary inspector may remove any such verminous article and cause the same to be cleansed purified disinfested or destroyed as the case may require and may recover the cost of so doing from such person.

(3) The medical officer and the sanitary inspector may enter the premises of any dealer in which any article is sold or exposed for sale for the purpose of examining whether there be any contravention of the provisions of this section or for the purpose of removing any verminous article.

(4) For the purposes of this section—

- “preparation for sale” shall not include disinfestation;
- “dealer” means any person who trades or deals in any of the articles referred to in this section.

63.—(1) As from the commencement of this section every person who shall carry on the trade or business of a hairdresser or barber shall register his name and place of abode and also the premises in which such trade or business is carried on in a book to be kept at the offices of the Corporation for the purpose and the Corporation shall thereupon issue a certificate of registration.

Registration of
hairdressers
and barbers
and their
premises.

PART V
—cont.

(2) The Corporation may make byelaws for the purpose of securing—

- (a) the cleanliness of any premises registered under this section and of the instruments towels materials and equipment used therein ; and
- (b) the cleanliness of persons employed in such premises in regard to both themselves and their clothing.

(3) The person registered shall keep a copy of the byelaws made by the Corporation under this section and the certificate of registration displayed in the registered premises.

(4) (a) Any officer of the Corporation or other person duly authorised in writing in that behalf by the Corporation and (if so required) exhibiting his authority shall at all reasonable times be afforded by the person registered full and free power of entry into the registered premises for the purpose of inspecting such registered premises and examining whether there is any contravention of the provisions of this section or any byelaw made thereunder and any such officer or person as aforesaid shall have the like power of entry into any premises in which there is reason to suppose that the said trade or business is being carried on :

Provided that the powers conferred by this subsection of entering premises for the purpose of examining whether there is any contravention of any byelaw made for the purposes mentioned in paragraph (b) of subsection (2) of this section shall not be exercised by any officer or person except a qualified medical practitioner in the employment of the Corporation or the sanitary inspector.

(b) Every person who refuses to permit any officer or authorised representative of the Corporation to enter or inspect any premises which such officer or authorised representative is authorised under the provisions of this section to enter or inspect or obstructs any such officer or representative in the execution of his duty under such provisions or under the provisions of any byelaw made under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(5) (a) Any person carrying on such trade or business as aforesaid whose name place of abode and premises in which such trade or business is carried on are not registered in accordance with subsection (1) of this section or whose registration has been cancelled or suspended as hereinafter provided or who contravenes any of the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(b) Any person who contravenes any byelaw made under this section shall be liable to a penalty not exceeding forty shillings and a court of summary jurisdiction may (in lieu of or in addition to imposing a penalty) order the cancellation or suspension of the registration.

(6) Where any company within the meaning of the Companies Act 1948 commits any offence for which a penalty is provided by this section proceedings may be taken in respect of such offence against all or any of the directors and managers and the secretary or other officer of such company as well as or instead of against the company and every such director manager secretary and officer shall be liable on conviction to the like penalty as if he were the person committing the offence unless he proves to the satisfaction of the court—

(a) that the act which constituted the offence took place without his knowledge consent or connivance; and

(b) that he was not guilty of any negligence in regard to securing the proper execution of this section.

(7) If the registration is cancelled or suspended under the provisions of subsection (5) of this section the certificate of registration shall be returned to the Corporation.

64.—(1) If the Corporation take action under paragraph (b) of subsection (1) of section 83 of the Act of 1936 and in the opinion of the Corporation it is necessary to use gas to destroy vermin on the premises they may serve notices on the occupiers of premises in the fumigation area and the risk area as defined in the Hydrogen Cyanide (Fumigation of Buildings) Regulations in force for the time being requiring all persons to vacate those premises during such period as may be specified by the Corporation:

Power to
require persons
to vacate
premises
during
fumigation.

Provided that the Corporation shall not require any person to vacate his premises under this section unless temporary shelter or house accommodation shall have been provided for him.

(2) Any person who contravenes a notice served under this section shall be liable to a penalty not exceeding five pounds.

(3) The Corporation may pay to any person required to vacate premises in pursuance of the powers contained in this section such reasonable allowance as they think fit towards his expenses in removing.

(4) The Rent and Mortgage Interest Restrictions Acts 1920 to 1939 shall not be deemed to cease to apply to a house or premises by reason only of the fact that such a house or premises has been or have been vacated in compliance with a notice served under this section.

PART V
—cont.Discontinuance
of offensive
trade.

65.—(1) In any case in which premises are being used for the carrying on of an offensive trade within the meaning of section 107 of the Act of 1936 and the council by resolution decide that it is inexpedient in the interests of public health or having regard to any change since the date of the establishment of such offensive trade in the character of the neighbourhood in which such premises are situate that such trade should be carried on in such premises the Corporation may serve on the owner or occupier of such premises notice stating the effect of the resolution and requiring him before the expiration of six months from the date of the notice to cease to use such premises for the carrying on of such offensive trade.

(2) Any person who contravenes any requirement of the Corporation under the provisions of subsection (1) of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) If the Corporation in pursuance of this section require any person to cease to use such premises for the carrying on of an offensive trade they shall pay to such person compensation for any loss sustained by him in consequence of the action of the Corporation:

Provided that this subsection shall not apply in the case of any premises with respect to which the consent of the Corporation shall have been given for a period only unless the Corporation shall have required that the user of such premises for the carrying on of an offensive trade shall cease before the expiration of such period.

(4) Nothing in this section shall extend or apply to any premises used for the carrying on of a trade or business in the course of which by-products from animals slaughtered for food are manufactured worked up processed produced sold or offered for sale For the purposes of this subsection "by-products" means and includes any material arising from any part of an animal after slaughter and whether in its natural state or after treatment.

(5) The powers of this section shall be in addition to and not in derogation of any other powers of the Corporation with reference to offensive trades.

Byelaws as
to tipping
refuse.

66.—(1) Section 81 of the Act of 1936 shall extend to empower the Corporation to make byelaws for regulating the tipping of dust spoil and refuse and for prohibiting the use of any refuse tip so as to be a nuisance to the occupiers of any premises in the neighbourhood thereof.

(2) The Corporation may by any byelaws made by them in pursuance of this section impose on offenders against the same

such penalties as they think fit not exceeding the sum of fifty pounds for each offence and in the case of a continuing offence a daily penalty not exceeding ten pounds.

(3) Without prejudice to any other remedy available the Corporation if satisfied of the existence of any conditions constituting a breach of any byelaw made in pursuance of this section may proceed in the same way as they are by the Act of 1936 authorised to proceed with respect to a statutory nuisance of the existence of which they are satisfied and sections 93 to 98 inclusive and section 100 of that Act shall apply accordingly:

Provided that a person offending against any byelaws made in pursuance of this section shall not in respect of such offence be subjected both to a penalty under the byelaws and to a penalty under section 94 of the Act of 1936 as applied by subsection (3) of this section nor shall any such offender be subjected in respect of one and the same period both to a further penalty under the byelaws for continuance of his offence after conviction and to a penalty under section 95 of the Act of 1936 (as so applied) for failing to comply with an order or contravening an order.

(4) Nothing in any byelaw made under this section shall extend to the tipping by the authority of any dust spoil or refuse arising from the generation of electricity on any land for the time being belonging to them and forming part of the site of or used in connection with a station for generating electricity.

(5) No byelaw under this section shall extend to regulate or control the tipping of spoil and refuse by any railway canal or inland navigation undertakers for the purpose of constructing widening or maintaining any railway canal or wharf works.

67. The Corporation may make byelaws for securing the proper ventilation and lighting of any existing stable used for the accommodation of horses (whether the same is used as such at the passing of this Act or not) and for the prevention of insanitary conditions—

Byelaws as to stables.

(a) in or about or arising out of any such stable; or

(b) in or about or arising out of or with regard to the situation in reference to other buildings of any stable erected after the passing of this Act.

68.—(1) As from the commencement of this section where any person being the owner of any bull ox cow heifer calf sheep lamb goat or pig which is emaciated or diseased and unfit for food is about to slaughter the same or about to cause the same to be slaughtered he shall give not less than twelve hours' previous notice to an authorised officer of such intention and shall on the application of an authorised officer within six weeks from the date of such slaughter furnish such information within

Notice of slaughter of animal unfit for food.

PART V
—cont.

his knowledge as the authorised officer may reasonably require for the purpose of enabling inquiries to be made to trace the disposition of the carcasses or any part thereof.

(2) Any person failing to give such notice or refusing to furnish such information or knowingly furnishing false information shall be liable to a penalty not exceeding ten pounds.

(3) Where by reason of accidental injury illness or exposure to infection it is necessary that any such animal should be slaughtered without delay the provisions of this section shall be deemed to be satisfied if—

(a) notice of the slaughter is given to an authorised officer as soon as reasonably possible whether before or after the slaughter takes place ; and

(b) the carcass is not disposed of until the expiration of twelve hours from the delivery of such notice or the disposal of the carcass has been approved by an authorised officer.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Acts 1894 to 1937 or of Part IV of the Agriculture Act 1937 or of any order licence or act of the Minister of Agriculture and Fisheries made granted or done thereunder.

(5) This section shall not apply to the slaughter of any animal to which the Public Health (Meat) Regulations 1924 to 1948 apply.

(6) In this section the expression “authorised officer” means—

(a) the medical officer ;

(b) the sanitary inspector ; or

(c) any other officer of the Corporation who is by virtue of the Food and Drugs Act 1938 an authorised officer for the purpose of the examination and seizure of meat under the provisions of that Act.

69.—(1) As from the commencement of this section the following provisions shall have effect in the borough :—

(a) no person other than a person keeping open shop for the sale of food shall either by himself or by any person employed by him sell offer or expose for sale any food from any cart barrow or other vehicle or from any basket pail tray or other receptacle unless he is registered with the Corporation ;

(b) no premises shall be used as storage accommodation for any food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle unless the premises are registered as aforesaid.

(2) An application for a person to be registered under this section shall be made by himself and an application for premises to be so registered shall be made by the owner or occupier or intending owner or occupier thereof.

(3) (a) The Corporation shall on registering any premises issue to the person making the application a certificate of registration which shall be kept affixed in a conspicuous place in the premises.

(b) If in pursuance of subsection (5) of this section the Corporation revoke the registration of the premises the certificate of registration shall be returned to the Corporation.

(4) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(5) (a) The Corporation may refuse to register any person or premises under this section or (after giving one month's notice to the person registered or in whose name the premises are registered) may revoke the registration of any person or premises under this section if they are satisfied—

(i) as regards a person that the public health is or is likely to be endangered by any act or default of his in relation to the quality storage or distribution of food ; or

(ii) as regards premises that the premises are not suitable to be used for the purposes aforesaid :

Provided that before refusing or revoking such registration the Corporation shall serve upon the person applying for registration or upon the person registered or in whose name such premises are registered a notice to appear before a committee of the council not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises Any such notice shall state the effect of paragraphs (b) and (c) of this subsection.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall if required by the person applying for such registration or the person registered or in whose name the premises are registered deliver to him within seven days of the receipt of such requirement a statement in writing of the ground or grounds upon which such refusal or revocation is based.

(c) Any person appealing to a court of summary jurisdiction under section 111 (As to appeals) of this Act against any such refusal or revocation shall do so within fourteen days from the date of the notice of such refusal or revocation.

PART V
—cont.

(6) The medical officer the sanitary inspector or any other officer of the Corporation appointed for the purpose shall have power at all reasonable times to enter and inspect any premises in the borough in respect of which an application has been received for registration under the provisions of this section and also any premises which he shall have reason to believe are being used as storage accommodation for food intended for sale from a cart barrow or other vehicle or from a basket pail tray or other receptacle. .D

(7) The Corporation shall keep a register of the persons and premises registered under the provisions of this section.

(8) The provisions of this section shall not apply to any premises registered under section 14 of the Food and Drugs Act 1938 or to any dairy or dairyman registered under Part II of that Act or under any regulations made thereunder or under an enactment thereby repealed.

(9) The provisions of this section shall not apply to any premises used as a theatre cinematograph theatre music hall or concert hall or to any person in respect of the sale or offer or exposure for sale of any food in any such premises.

(10) In this section the expression "food" does not include any substance contained in a container of such materials and so closed as to exclude all risk of contamination.

Power to
prohibit
persons in
advanced
state of
tuberculosis
from selling
&c. food.

70.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

(2) If any such person shall fail to comply with such request the Corporation may apply to a court of summary jurisdiction for an order requiring him to stop his employment and the court shall have power to make such an order if after consideration of all the circumstances it thinks fit to do so and may direct that such compensation as it deems equitable shall be paid by the Corporation to such person.

(3) If any such person contravenes any such order he shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(4) This section shall not apply to any employment or occupation to which the Public Health (Prevention of Tuberculosis) Regulations 1925 apply.

71.—(1) All steam or waste gas ejected from any stationary engine or the boiler or condensers thereof and all condensing water above a temperature of one hundred and ten degrees fahrenheit so ejected and all spent and ejected steam arising or produced in any trade business or manufacture shall be so discharged as not to be an annoyance to the public.

Ejection of steam and waste gas to annoyance of public.

(2) Any person who shall cause or permit steam or waste gas or condensing water to be discharged contrary to the provisions of this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of this section shall not apply to any engine used by railway undertakers.

72.—(1) Every person who uses a stationary internal combustion engine shall provide and use an effective silencer on the exhaust of such engine and shall at all times keep such silencer in proper repair.

Silencers for internal combustion engines.

(2) The Corporation shall have access to and be at liberty to take off remove test inspect and replace any such silencer at all reasonable times such taking off removing testing inspecting and replacing to be done at the expense of the Corporation if the silencer be found in proper order but otherwise at the expense of the person aforesaid:

Provided that nothing in this subsection shall apply to any stationary internal combustion engine belonging to any railway canal or inland navigation undertakers and used by them for the purposes of their undertaking.

(3) Any person who shall use a stationary engine or permit the same to be used contrary to the provisions of this section after having received reasonable notice from the Corporation to the effect that he is or has been so using such engine or permitting the same to be so used shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding forty shillings.

73.—(1) A noise nuisance shall be liable to be dealt with as a statutory nuisance under the Act of 1936:

Noise nuisance.

Provided that no complaint to a justice under section 99 of the said Act shall be of any effect unless it is signed by not less than three householders or occupiers of premises within hearing of the noise nuisance which is the subject of the complaint.

(2) In any proceedings under the Act of 1936 in respect of a noise nuisance occasioned in the course of any trade business or occupation it shall be a good defence for the person charged to

PART V
—cont.

show that he has used the best practicable means of preventing or mitigating the nuisance having regard to the cost and to other relevant circumstances.

(3) For the purpose of this section a noise nuisance shall be deemed to exist where any person makes or continues or causes to be made or continued any excessive or unreasonable or unnecessary noise which is injurious or prejudicial to health.

(4) Nothing in this section shall affect the powers of the Corporation to make byelaws under section 249 of the Act of 1933.

(5) Nothing in this section shall apply to any railway canal or inland navigation undertakers or their servants exercising statutory powers.

PART VI

FINANCE AND RATING

Power to
Corporation
to borrow.

74.—(1) Subject to the provisions of this Act the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority the sum or sums requisite for the payment of the costs charges and expenses of this Act and they shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of that Act and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

As to exercise
of borrowing
powers.
8 & 9 Geo. 6.
c. 18.

75. It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

Accounts of
undertakings.

76.—(1) The Corporation shall keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation (each of which is in this section separately referred to as “the undertaking”) on the one side all receipts in respect of the undertaking (including the income from any authorised fund provided in connection with the undertaking) and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts representing—

- (a) the working and establishment expenses and cost of maintenance of the undertaking;

- (b) the interest on moneys borrowed by the Corporation for the purposes of or connected with the undertaking or used for those purposes under any enactment ;
- (c) the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the undertaking ;
- (d) all other expenses (if any) of the undertaking properly chargeable to revenue ;
- (e) the amount (if any) paid to any reserve fund which the Corporation are from time to time authorised to maintain ; and
- (f) any money expended on any of the purposes mentioned in section 77 (Application of revenue of undertakings) of this Act other than the purpose mentioned in paragraph (e) of this subsection.

(2) The Corporation shall show in their accounts relating to any undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

77.—(1) If in respect of any year the moneys received by the Corporation on account of the revenue of any of the undertakings of the Corporation (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation out of the general rate fund in respect of that undertaking for the several purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section the Corporation may in respect of that year (if they think fit but subject to the provisions hereinafter contained) apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes :—

- (a) in reduction of capital moneys borrowed for the purposes of the undertaking ;
- (b) in the renewal and the construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys ;

PART VI
—cont.

(c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are used in any other manner authorised by any enactment) investing the same in statutory securities until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation.

(2) Any reserve fund which has been provided in respect of any undertaking of the Corporation and which is in existence on the first day of April one thousand nine hundred and forty-nine shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section may be applied—

(a) in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed ; or

(b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking ; or

(c) in or towards the payment of the cost of renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof ;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(4) Resort may be had to a reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

Date of
operation of
certain
sections.

78. The two last preceding sections of this Act shall be deemed to have come into operation on the first day of April one thousand nine hundred and forty-nine.

Consolidated
loans fund.

79.—(1) Notwithstanding anything in this or any other Act or any Order on and after the thirty-first day of March one thousand nine hundred and fifty the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid—

(a) all moneys borrowed by the Corporation by the issue of any authorised securities together with all moneys borrowed under any enactment without or pending the issue of an authorised security in connection with the exercise of any statutory borrowing power ;

- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are to be applied by the Corporation with due authority to another capital purpose; and
- (c) the appropriate sums provided each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys so borrowed or received and of all sums provided by the Corporation as aforesaid before the date on which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the redemption of authorised securities the purchase of bonds or stock for extinction or the repayment of any moneys borrowed by the Corporation; and
- (b) in the exercise of any statutory borrowing power by the transfer of the required amount to the appropriate fund and account of the Corporation:

And the moneys of the consolidated loans fund not used or applied in these ways or intended to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not except with the consent of the Minister be used or applied otherwise than as provided by this section.

(3) There shall also be transferred to the consolidated loans fund such sums as are necessary to meet the interest charges and the financing and other revenue expenses connected with the management of that fund and separate accounts shall be kept of these sums and their application.

(4) The Corporation may pay into the consolidated loans fund any moneys forming part of any reserve capital renewal repairs depreciation contingency superannuation or other similar fund (in this section respectively referred to as “the lending fund”) and not for the time being required for the purposes for which the lending fund was established and such moneys shall be deemed to be moneys borrowed by the Corporation within the

PART VI
—cont.

meaning of subsection (1) of this section and shall be used accordingly subject to the following conditions:—

- (a) the moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the lending fund was established ; and
- (b) there shall be paid out of the consolidated loans fund to the general rate fund an amount equal to the interest on any moneys so used and for the time being not repaid to the lending fund at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings and in the accounts of the general rate fund an amount equal to the interest as aforesaid shall (subject to any prescribed limit on the amount of the lending fund) be credited to the lending fund.

(5) Save as in this section expressly provided all the obligations of the Corporation to the holders of authorised securities shall continue in force.

(6) The powers conferred by this section shall not be exercised by the Corporation except in accordance with a scheme to be made by the Corporation and approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

(7) Any scheme approved by the Minister under this section may from time to time be altered extended amended or revoked by a scheme made and approved in like manner as the original scheme.

Capital
fund.

80.—(1) The Corporation may (if they think fit) establish a fund to be called “ the capital fund ” to which they may pay—

- (a) any sums derived from the sale of any property of the Corporation ;
- (b) the surplus of the revenue income over the revenue expenditure of the general rate fund (not required by law to be applied to or carried forward for any other purpose) on the thirty-first day of March in any year ; and
- (c) such other sums from the revenue of the general rate fund (including a sum equal to the interest earned on the capital fund and any income arising from the application of that fund to the purposes authorised) as the council may by resolution direct not being moneys directed by law to be applied to any other purpose :

Provided that—

PART VI
—cont.

(i) the aggregate amount paid to the capital fund under paragraphs (b) and (c) of this subsection (in addition to the sum equal to the interest earned on the capital fund and any income arising from the application of the fund to the purposes authorised) shall not except with the consent of and to such extent as may be approved by the Minister exceed in any year the equivalent of twice the product of a penny rate as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act 1925; and

15 & 16 Geo. 5.
c. 90.

(ii) payments into the capital fund shall not be made whenever that fund amounts to twenty-five thousand pounds or such greater sum as may from time to time be approved by the Minister.

(2) The Corporation may apply the moneys in the capital fund in defraying any expenditure to which capital is properly applicable (other than expenditure in connection with an undertaking from which revenue is derived) or in providing money for repayment of loans (but not in making the annual payment required to be made therefor):

Provided that the amount to be expended under this subsection shall not exceed the sum of five thousand pounds in any one transaction unless a greater sum shall in any case be allowed by the Minister.

(3) (a) Pending the application of moneys in the capital fund to the purposes authorised by the last preceding subsection the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment of the moneys in the capital fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund.

(4) All moneys derived from the sale of any land of the Corporation which are applied from the capital fund under the provisions of this section shall and all other moneys which are applied from the capital fund may if the Corporation think fit be repaid from the account to which such moneys were advanced by such annual instalments with or without interest and within such period as may be determined by the Corporation.

(5) Any sum derived from the sale of any corporate land of the Corporation as defined in section 305 of the Act of 1933 and paid to the capital fund shall not except with the consent of the Minister be applied otherwise than in the purchase or acquisition of other corporate land.

PART VI
—cont.

(6) Nothing in this section shall affect the operation of paragraphs (a) (b) or (c) of subsection (1) of section 8 of the Local Authorities Loans Act 1945 in any case in which the moneys in the capital fund are used in pursuance of that section.

Renewal and
repairs fund.

81.—(1) The Corporation may (if they think fit) establish a fund to be called “the renewal and repairs fund” for the purpose of defraying the expenditure to be incurred from time to time in repairing maintaining and renewing any buildings works plant tools machinery appliances horses carts vehicles boilers and equipment and apparatus in connection therewith office machinery furniture fittings and appliances or things and in maintaining and repairing paths and apparatus in public walks and pleasure grounds and may from time to time apply any fund so established or any part thereof in defraying such expenditure but this section shall not apply to any buildings works plant appliances or things for the purposes of any undertaking of the Corporation in respect of which they are authorised to provide a reserve fund or to any building in respect of which they are required by the Acts relating to housing to keep a housing repairs account.

(2) The Corporation may from time to time pay out of the general rate fund such sums as they think fit into a fund to be established under this section.

(3) When the renewal and repairs fund shall amount to the sum of fifty thousand pounds the Corporation shall cease to make payments into the said fund but if the said fund is at any time reduced below the sum of fifty thousand pounds the Corporation may recommence and continue payments until the said fund be restored to the sum of fifty thousand pounds.

(4) (a) Pending the application of moneys forming part of the renewal and repairs fund to the purposes authorised by this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the renewal and repairs fund in manner provided by this subsection together with any income arising from the application of the fund to the purposes authorised shall be carried to and form part of the general rate fund and (subject to the limitation imposed by subsection (3) of this section) an amount equivalent to such income shall be credited to the renewal and repairs fund.

General
insurance
fund.

82.—(1) The Corporation may (if they think fit) establish a fund to be called “the insurance fund” with a view to providing a sum of money which shall be available for making good all such losses damages costs and expenses as may from time to time be specified in a resolution of the council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) In each year after the establishment of the insurance fund the Corporation shall pay into that fund either—

(a) such a sum as shall in their opinion be not less than the aggregate amount of the premiums which would be payable if the Corporation fully insured in some insurance office of good repute against the specified risks ; or

(b) if the Corporation insure in some insurance office against the whole or any part of all or any of the specified risks such sum as will together with the premiums paid for the last-mentioned insurance be not less than the aggregate amount aforesaid.

(4) When the insurance fund shall amount to the prescribed amount (as hereinafter defined) the Corporation may if they think fit discontinue the yearly payments to the fund but if the fund is at any time reduced below the prescribed amount the Corporation shall recommence and continue the yearly payments to that fund in accordance with subsection (3) of this section until the fund be restored to the prescribed amount.

(5) The Corporation shall provide the yearly payments aforesaid by contributions from the general rate fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking department or service of the Corporation which if the specified risks were insured against in an insurance office would be properly chargeable with the payment of the premium of such insurance.

(6) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses damages costs and expenses in consequence of the specified risks all moneys for the time being standing to the credit of the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to the general rate fund.

(b) In addition to the sum required to be paid into the insurance fund by subsection (3) of this section the Corporation shall in every year so long as the fund is less than the prescribed amount carry to the credit of that fund out of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

PART VI
—cont.

(c) If and so long as the insurance fund amounts to the prescribed amount the interest and other annual proceeds received by the Corporation in respect of or on investments forming part of the insurance fund and carried to the general rate fund may be apportioned in the accounts of the Corporation between the several undertakings departments or services liable to contribute to the insurance fund in such shares or proportions as may be equitable.

(7) (a) The insurance fund shall be applied to meet any losses damages costs or expenses sustained by the Corporation in consequence of the whole or any part of all or any of the specified risks in the order of the dates on which such losses damages costs or expenses become ascertained and if at any time and from time to time the insurance fund shall be insufficient to make good any such losses damages costs or expenses the Corporation may with the sanction of the Minister borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(8) In this section "the prescribed amount" means such sum as may from time to time be prescribed by the Corporation.

Art fund.

83.—(1) The Corporation may (if they think fit) establish a fund to be called "the art fund" to provide for the purchasing of any pictures sculptures or other objects of artistic scientific or historical interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection in the Corporation's art galleries museums municipal buildings or other building of the Corporation and such fund shall be formed by annually appropriating thereto out of the general rate fund such an amount as the Corporation may from time to time determine not exceeding in any financial year the equivalent of one-fifth of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925 or such greater fraction (not exceeding one-half) of the product of a penny rate as may be approved by the Minister:

Provided that when the art fund shall amount to ten thousand pounds the Corporation shall discontinue such annual payments but if the fund is at any time reduced below the sum of ten thousand pounds the Corporation may recommence and continue the annual payment until the fund be restored to the sum of ten thousand pounds.

PART VI
—cont.

(2) (a) Pending the application of the art fund to the purposes authorised by this section the moneys in the fund shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities.

(b) Any income arising from the investment or use of the moneys in the art fund in manner provided by this subsection shall be carried to and form part of the general rate fund and (subject to the limitation imposed by the proviso to subsection (1) of this section) an amount equivalent to such income shall be credited to the art fund.

84.—(1) The Corporation may (if they think fit) grant a gratuity by way either of a lump sum or of periodical payments to the widow or dependants of any employee who may die in their service not exceeding in the aggregate an amount equal to twice the amount of the annual emoluments of the employment: Power to grant allowances or gratuities in certain cases.

Provided that this section shall not apply—

(a) in the case of a widow to whom a pension is granted in pursuance of section 9 of the Local Government Superannuation Act 1937; or 1 Edw. 8. & 1 Geo. 6. c. 68.

(b) in the case of a widow or dependant entitled in consequence of the death of such employee to compensation under the Workmen's Compensation Act 1925 or to death benefit under the National Insurance (Industrial Injuries) Act 1946. 15 & 16 Geo. 5. c. 84. 9 & 10 Geo. 6. c. 62.

(2) Every such allowance or gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such employee would have been charged or been paid if he had continued in his employment.

85.—(1) If on the death of an employee (which expression in this section includes a former employee or pensioner of the Corporation or other person) to whom or to whose personal representative a sum not exceeding one hundred pounds is due from the Corporation on account of salary wages superannuation allowance pension gratuity grant or repayment of contributions to any superannuation fund or of contributions otherwise made in respect of superannuation with or without interest a grant of probate of the will of the employee or of letters of administration to his estate is not produced to the Corporation within such time (not being less than one month after his death) as the Payments due to deceased employees.

PART VI
—cont.

15 & 16 Geo. 5. Corporation may think reasonable then at the expiration of that
c. 23. time the Corporation may pay such sum to the person or persons
16 & 17 Geo. 5. entitled to the residuary estate of the employee by virtue of the
c. 60. provisions of paragraphs (i) to (vi) inclusive of section 46 (1)
of the Administration of Estates Act 1925 and section 9 of
the Legitimacy Act 1926 to the intent that such sum shall be
applied in due course of administration:

Provided that—

(a) the Corporation may (notwithstanding the receipt of a notice under proviso (b) of this subsection) if they think fit pay out of such sum the funeral expenses of the deceased employee or so much thereof as the Corporation consider reasonable having regard to any death grant which has been or is to be paid under section 22 of the National Insurance Act 1946;

(b) if the Corporation receive notice in writing of any claim against the estate of the deceased employee at any time before they shall have paid the whole of such sum in accordance with the provisions of this subsection they shall not (except in any case in which the provisions of section 46 (1) (vi) of the Administration of Estates Act 1925 are applicable) pay such sum or the balance thereof in their hands to any person other than to the personal representative of the deceased employee unless and until such claim has been satisfied disproved or withdrawn.

(2) Before paying any sum in accordance with the provisions of subsection (1) of this section (except under proviso (a) thereof) to any person other than the personal representative of the deceased employee the Corporation shall require either—

(a) a statutory declaration or (when payment is made to the Crown or to the duchy of Lancaster or to the duchy of Cornwall) a statement by the person or one of the persons to whom the Corporation may pay and propose to pay such sum or any part thereof to the effect that the total estate of the deceased employee (including such sum but after deduction of debts and funeral expenses) does not exceed four hundred pounds; or

(b) the production of a certificate from the Commissioners of Inland Revenue to the effect either that no death duties are payable in respect of such sum or that any duties so payable have been paid.

(3) The Corporation shall be discharged from all liability in respect of any payment or application of money effected by them in exercising their powers under this section.

86.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

PART VI
—cont.

Recovery of
rates from
certain owners.

The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

(3) This section shall not apply to any hereditament to which subsection (1) of section 11 of the Rating and Valuation Act 1925 as amended by section 55 of the Local Government Act 1948 applies by virtue of a resolution of the council.

11 & 12 Geo. 6.
c. 26.

PART VII

MISCELLANEOUS

87.—(1) The Corporation may with the consent in writing of the owner of any building or wall or any bridge over any street attach thereto such lamps brackets heating mains electric lines and attachments (in this section referred to as “attachments”) as may be required for the purposes of street lighting or the heating undertaking.

Attachment
of lamps &c.
to buildings
and bridges.

(2) Where in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld they may make complaint to a court of summary jurisdiction who may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as they may think fit or disallow the attachments.

(3) The provisions of subsection (2) of this section shall not apply in relation to—

- (a) any building or wall forming part of an aerodrome; or
- (b) any building which is designated in a list compiled or approved by the Minister of Town and Country Planning as being a building of special architectural or historic interest or any building or wall which the owner thereof alleges to be a building or wall of such interest; or

PART VII
—cont.

- (c) any building or wall or bridge owned by any highway authority railway canal or inland navigation undertakers ; or
- (d) any building or wall owned by the electricity board or the gas board ;

but if in the opinion of the Corporation any consent under subsection (1) of this section is unreasonably withheld in relation to any such building or wall or bridge they may appeal in the case of a building being or alleged to be of special architectural or historic interest to the Minister of Town and Country Planning in the case of a building or wall owned by the electricity board or the gas board to the Minister of Fuel and Power in the case of a building or wall or bridge owned by any highway authority or railway canal or inland navigation undertakers to the Minister of Transport and in any other case to the Minister and the Minister of Town and Country Planning the Minister of Fuel and Power the Minister of Transport or the Minister (as the case may be) may by order either allow the attachments subject to such terms (if any) as to compensation or rent or otherwise as he thinks fit or disallow the attachments.

(4) Where any attachments have been affixed to a building or wall or bridge under this section and the person who gave the consent or who was the owner when the order allowing the attachments was made ceases to be the owner of the building or wall or bridge the subsequent owner may give to the Corporation notice requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall (unless otherwise agreed) within six months after the service of the notice remove the attachments :

Provided that the provisions of subsection (2) and subsection (3) of this section shall apply in relation to any such notice as they apply in relation to a refusal of a consent to the making of attachments.

(5) Where any attachments have been made under this section to any building or wall or bridge the owner of the building or wall or bridge may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building or wall or bridge.

(6) Where any attachments have been made under this section to a building or wall or bridge the Corporation shall be liable to the owner of the building or wall or bridge for any damage occasioned thereto by reason or in consequence of such attachments having been so made.

(7) In this section—

the expression “owner”—

PART VII
—cont.

(a) in relation to a building or wall occupied under a tenancy for a term of years whereof five years or more remain unexpired means the occupier of the building;

(b) in relation to a building occupied under any other tenancy means the person who is receiving the rack rent or who would receive the rack rent if the building were let at a rack rent;

(c) in relation to a building or wall forming part of an aerodrome means (notwithstanding anything in this subsection) the person having control of the aerodrome;

and the expression “own” shall be construed accordingly; and

the expression “aerodrome” means an aerodrome licensed pursuant to an order made under the Air Navigation Act 1920. 10 & 11 Geo. 5.
c. 80.

88. When any portion of any park or place of public resort or recreation is set apart by the Corporation for any purpose under section 76 of the Public Health Acts Amendment Act 1907 the Corporation may permit the exclusive use by any club or other body or persons of any such portion so set apart as aforesaid and of any pavilions buildings or refreshment or other rooms or conveniences subject to the payment of such charges and the observance of such conditions as the Corporation may think fit: Charges for and letting of parks &c. for games.

Provided that nothing in this section shall empower the Corporation to permit at one and the same time the exclusive use of more than one-half of the area of any park or place of public resort or recreation for the time being belonging to them or under their control or more than one-quarter of the total area of all such parks or places.

89. Every person who negligently breaks throws down or otherwise damages any street refuge street sign public lamp or lamp-post or street orderly bin or other receptacle for the temporary deposit and collection of dust ashes and rubbish or street sand bin or life-saving apparatus or any other property of the Corporation shall make full compensation to the Corporation for the damage done and such compensation may be recovered in any court of competent jurisdiction. Compensation for injuring lamps &c.

90. The Corporation may expend on the provision of prizes in connection with any competition they may hold relating to their tenants' gardens such sums as they may from time to time As to prizes for garden competitions.

PART VII
—cont.Payment
of certain
expenses.

think fit not exceeding in any financial year the sum of one hundred pounds.

Maintenance
of graves &c.

91. The Corporation may pay reasonable expenses in connection with the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

2 Edw. 7.
c. 8.

92.—(1) The Corporation may accept a capital sum for the purpose of maintaining a particular grave or grave space or monument or urn or niche or memorial brass or its equivalent in a cemetery provided by the Corporation under the Public Health Acts or in a burial ground provided by the Corporation under the Burial Acts 1852 to 1906 or in a crematorium provided by them under the Cremation Act 1902.

(2) The Corporation may apply for the purposes of this section any sum of money received by them before the passing of this Act in consideration of such maintenance.

(3) (a) Any such capital sum shall (unless applied in any other manner authorised by any enactment) be invested in statutory securities and a sum equal to the interest thereon applied in maintaining the grave or grave space or monument or urn or niche or memorial brass or its equivalent in such manner as the Corporation think fit and for such period as may be agreed between the Corporation and the person by whom such capital sum is paid.

(b) Any income arising from the investment of such capital sum in the manner provided by the foregoing paragraph of this subsection and any income arising from the application of the sum to the purposes authorised shall be carried to and form part of the general rate fund.

(c) The Corporation may on the expiration of the period agreed by the Corporation for the maintenance of the grave grave space monument urn niche or memorial brass or its equivalent as the case may be apply such capital sum in any manner in which capital money received may properly be applied under any enactment.

(4) Any such capital sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to the cemetery burial ground or crematorium.

Provision of
weighing
machines.

93. The Corporation may provide and maintain weighing machines for weighing persons in any premises belonging to the Corporation and may charge for the use thereof.

Byelaws as
to pleasure
fairs.

94.—(1) The Corporation may from time to time make byelaws—

(a) for regulating the hours during which pleasure fairs may be open to the public ;

(b) for securing safe and adequate means of ingress to and egress from the ground upon which any pleasure fair is held ;

(c) for the prevention and suppression of nuisances and for preserving sanitary conditions cleanliness order and public safety at any pleasure fair.

(2) In this section the expression “ pleasure fair ” means any entertainment which is run for profit and which consists of or includes any or all of the following whether or not in combination with any other forms of entertainment that is to say any travelling circus exhibition of human beings or performing animals merry-go-round roundabout switchback railway coconut shy hoop-la shooting gallery or swings or anything similar to any of the foregoing :

Provided that the said expression does not include any fair held by statute charter royal licence letters patent or ancient custom or any fair organised for a charitable purpose if the profits are devoted solely to that purpose.

(3) Before making any byelaws under this section the Corporation shall give to the Amusement Caterers’ Association the Association of Amusement Park Proprietors of Great Britain and the Showmen’s Guild of Great Britain not less than one month’s notice of the intention of the Corporation to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said associations and guild thereon before they submit them to the Secretary of State for confirmation.

95.—(1) The Corporation may either alone or in co-operation with any association or body organise or conduct horticultural shows in the borough.

Power to
organise
horticultural
shows.

(2) The Corporation may contribute towards the cost of such horticultural shows or provide trophies and prizes to be awarded to participants in any such shows.

(3) The Corporation may charge such entrance fees as they think fit to entrants for such horticultural shows.

(4) The Corporation may make rules relating to any matters in connection with such horticultural shows.

(5) The sum expended by the Corporation under this section shall not in any financial year exceed two hundred pounds.

96.—(1) The Corporation may undertake the cultivation of any land in the borough in their occupation for agricultural purposes until it is required for the purposes for which it was acquired and may also breed keep rear and otherwise deal in pigs on such land.

Cultivation
of land &c.

PART VII
—cont.

(2) For the purposes of this section the Corporation may purchase lease erect and maintain buildings in the borough and may provide purchase sell and dispose of all stock plant material apparatus appliances and things and generally do all acts and things necessary or expedient for the said purposes or incidental thereto as they shall think fit.

(3) The Corporation may employ officers and servants in connection with and for the purposes aforesaid.

Establishment
of golf
courses.

97. The Corporation may—

- (1) upon any lands already acquired by the Corporation and used for the purpose of a golf course or acquired or appropriated after the passing of this Act for that purpose form construct alter maintain regulate manage and use golf courses with all proper and convenient houses pavilions works buildings equipment apparatus and conveniences ;
- (2) make charges for the use of any of their golf courses or of any part thereof and of any buildings conveniences or apparatus provided in connection therewith ;
- (3) permit the use by any club or other body or persons of any of their golf courses lands buildings conveniences equipment or apparatus aforesaid subject to such charges and conditions as the Corporation may think fit ;
- (4) let on lease or otherwise to any club company body or persons any of their golf courses or any part thereof and the lands houses pavilions works buildings equipment apparatus and conveniences as aforesaid for such consideration and upon such terms and conditions as the Corporation may think fit ;
- (5) provide and sell and may enter into any agreement or arrangement with any person for the provision and sale at any such golf course or in any such house pavilion or building as aforesaid of refreshments of all kinds subject to the provisions of all enactments relating thereto and may also upon such terms and conditions and for such periods as they may think fit grant to any person the right so to provide and sell refreshments :

Provided that the Corporation shall not under the powers of this subsection provide or sell refreshments within the city of Birmingham except with the consent of the Birmingham Corporation ;

- (6) make and enforce byelaws for regulating the use of their golf courses whether within or without the borough and the conduct of persons using the same or resorting thereto Without prejudice to the generality of the foregoing provisions of this paragraph such byelaws may contain provisions for ensuring the uninterrupted user of the greens and fairways by persons playing the game of golf and may preclude other persons from obstructing such greens and fairways:

Provided that nothing in any such byelaws shall interfere with the right of the public to make proper use of the public footpaths on the Brandhall golf course of the Corporation ;

- (7) employ officers and servants in connection with and for the purposes aforesaid.

98. For the protection of the electricity board the gas board the Birmingham Corporation and the company (each of whom is in this section referred to as "the undertakers") the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

For protection
of statutory
undertakers.

- (1) In this section the expression "apparatus" means—

(a) as regards the electricity board the electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to the electricity board ;

(b) as regards the gas board the Birmingham Corporation and the company any mains pipes or other apparatus belonging to the gas board the Birmingham Corporation or the company (as the case may be):

- (2) If it shall be agreed between the Corporation and the undertakers or (in case of difference) determined by arbitration that in consequence of—

(a) the provision under section 29 (Means of access to buildings) of this Act of a means of communication across any footway ;

(b) the addition to the carriageway of a street under the powers of section 30 (Rounding of corners at street junctions) or section 31 (Power to vary width of carriageways and footways) or section 39 (Power to lay out grass margins &c. in streets) of this Act of any portion of a footway or (in the case of apparatus erected laid or placed on or above the surface of the ground) the addition to the footway of a street under those powers of any portion of a carriageway ;

PART VII
—cont.

(c) the stopping up or diversion under an order made pursuant to section 32 (Stopping up and diversion of highways) of this Act of any highway or any length of a highway ; or

(d) the construction under the powers of section 38 (Crossings over footways) of this Act of a carriage-crossing across the footway of any street or the allowance under the powers of that section of the use as a crossing for any horse or horse-drawn or mechanically propelled vehicle of the footway of any street ;

in under upon or over which any apparatus is situate it is reasonably necessary that any apparatus should be removed or diverted or that the position of any apparatus should be altered or that works (hereinafter referred to as “ protective works ”) for the protection of any apparatus should be executed the undertakers may and (if so required by the Corporation) shall remove or divert or alter the position of or execute protective works in respect of the apparatus according as and in such manner as may be agreed or determined by arbitration and the Corporation shall repay to the undertakers the amount of the costs and expenses reasonably incurred by the undertakers in or in connection with such removal diversion or alteration or the execution of such protective works (which costs and expenses are hereinafter referred to as “ the said expenses ”) :

Provided that if in carrying out any such diversion or alteration of position or the execution of protective works—

(A) (i) the undertakers erect lay or place new apparatus in substitution for their existing apparatus ; and

(ii) the existing apparatus was erected laid or placed before the commencement of the period of seven years and six months immediately preceding the diversion or alteration of position of the apparatus or the execution of such protective works ; or

(B) the said expenses are enhanced by—

(i) the substitution for the existing apparatus of apparatus of greater dimensions (other than length) or of greater capacity or apparatus of improved type ; or

(ii) the laying or placing of apparatus at a depth greater than that of the existing apparatus except where and to the extent to which such greater depth is reasonably necessary in order to avoid interference with other underground apparatus works or structures;

the undertakers shall themselves bear (in the case referred to in paragraph (A) of this proviso) such proportion of the said expenses as represents the estimated saving of expense to the undertakers resulting from the consequent deferment of the date at which the existing apparatus would have required to be renewed and (in the case referred to in paragraph (B) of this proviso) such proportion of the said expenses as represents the amount by which such expenses exceed the cost which would have been incurred if the dimensions (other than length) or the capacity of the apparatus so laid or placed had been the same as those of the original apparatus or if the apparatus had been laid or placed at the same depth as the existing apparatus:

Provided also that where the apparatus had been laid or placed in under upon or over the part of the highway street or footway affected within the period of two years immediately preceding the giving of the relevant notice required by paragraph (4) of this section and at the time of the laying or placing of that apparatus the Corporation had given to the undertakers notice in writing of their intention of exercising the powers necessitating the removal or diversion or alteration of position of the apparatus or the execution of protective works with a statement of the manner in which and the extent to which they intended to exercise such powers no part of the said expenses shall be repayable by the Corporation if the said powers are exercised by the Corporation in accordance with the statement so given or with such variation only of the particulars contained in that statement as not prejudicially to affect the undertakers:

- (3) Notwithstanding the stopping up or diversion under an order made pursuant to section 32 (Stopping up and diversion of highways) of this Act of any highway or any length of a highway in under upon or over which highway or length of a highway any apparatus is situate the undertakers shall (unless the apparatus is removed or diverted under the provisions of paragraph (2) of this section or unless new apparatus has been laid in substitution therefor) continue to have the same

PART VII
—cont.

powers and rights in respect of such apparatus as if the land in under upon or over which the same is situate had continued to be part of the highway :

- (4) The Corporation shall give to the undertakers not less than twenty-eight days' notice in writing of their intention to exercise the powers conferred by any of the sections referred to in paragraph (2) of this section with respect to any portion of a highway street or footway in under upon or over which any apparatus is situate and such notice shall be accompanied by a plan and (in the case of the addition of part of the footway to the carriageway) a section showing the nature and extent of the proposals in so far as they relate to any such portion of a highway street or footway as aforesaid :
- (5) If within twenty-eight days after the receipt from the Corporation of any notice under paragraph (4) of this section of their intention to exercise any such powers as are referred to in that paragraph the undertakers give to the Corporation notice in writing of their intention (otherwise than by the requirement of the Corporation) to remove or divert or alter the position of or to execute protective works in respect of any apparatus affected by the exercise of such powers and at the same time deliver to the Corporation a plan section and particulars of any such diversion or alteration of position or particulars of any such protective works (as the case may be) the Corporation shall not exercise the powers referred to in the notice given by them as aforesaid until—

(a) it shall have been agreed between the Corporation and the undertakers or settled by arbitration whether such intended removal diversion or alteration of position of apparatus or the execution of such intended protective works is reasonably necessary ; and

(b) the plans sections and particulars of any diversion or alteration of position to be carried out or the particulars of any protective works to be executed have been so agreed or settled :

Provided that if the proposals contained in any notice given to the Corporation by the undertakers under this paragraph and any plans sections or particulars delivered to the Corporation with such notice are not disapproved by the Corporation within twenty-eight days after the receipt thereof the said proposals shall be deemed for the purposes of this section to be

reasonably necessary and the Corporation shall be deemed to have approved such plans sections or particulars:

PART VII
—cont.

- (6) Forthwith after the completion of any such removal or diversion or alteration of position of apparatus or of any such protective works the undertakers shall if reasonably required by the Corporation fill in the excavation and make good the surface of the ground to the reasonable satisfaction of the Corporation:
- (7) The Corporation shall not exercise the powers of section 41 (Planting of trees in streets) and section 47 (Power to place fences near school entrances &c.) of this Act so as to cause damage to or to obstruct or render less convenient the access to any apparatus:
- (8) Any difference or dispute which may arise between the Corporation and the undertakers under this section shall be referred to arbitration.

PART VIII

GENERAL

99. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Corporation.

100. There may be included—

- (a) in one and the same demand or in any schedule thereto any general rate and any charges for the supply of heat; and
- (b) in one and the same complaint information or summons or in any schedule thereto any charges for the supply of heat:

Demand
complaint
information
or summons
may contain
several sums.

Provided that the rates or charges are due and payable to the Corporation from the same person whether under the same or different enactments.

101. Where under the provisions of this Act or any local Act in force in the borough the Corporation shall construct or do any works for the common benefit of two or more buildings belonging to different owners the expenses which under those Acts or any of them are recoverable by the Corporation from the owners shall be paid by the owners of such buildings in such proportions as shall be determined by the surveyor or in case of dispute by a court of summary jurisdiction.

Apportionment
of expenses in
case of joint
owners.

PART VIII

—cont.

In executing
works for
owner
Corporation
liable for
negligence
only.

102. Whenever the Corporation or any of their officers under any enactment execute re-execute or alter any work or do any act or thing in default or at the request of the owner occupier or other person required to execute re-execute or alter such work or do such act or thing the Corporation shall not as between themselves and such owner occupier or other person in the absence of any negligence on their part or the part of any contractor or other person employed by them be liable to pay any damages penalties costs charges or expenses for or in respect of or consequent upon the executing re-executing or altering of such work or the doing of such act or thing and any such damages penalties costs charges or expenses paid by the Corporation in the absence of negligence as aforesaid shall be deemed to be part of the expenses payable by such owner occupier or other person and shall accordingly be recoverable by the Corporation.

Undertakings
to bind
successive
owners.

103.—(1) Every undertaking or agreement under seal expressed to be given or made in pursuance of this section and being—

(a) an undertaking given by or to the Corporation to or by the owner of any legal estate in land or property ;
or

(b) an agreement between the Corporation and any such owner ;

on the passing of plans or otherwise in connection with such land or property shall be binding upon such owner and his successors in title and all persons claiming through or under him or them and upon the Corporation and such owner and other persons upon whom such undertaking or agreement is binding shall be entitled to require from the Corporation a copy thereof.

(2) Any such undertaking or agreement shall be treated as a local land charge for the purposes of the Land Charges Act 1925.

(3) Any such undertaking or agreement shall not be binding upon any person in whom any other legal estate in such land or property is vested at the date thereof nor upon his successors in title unless such person joins in such undertaking or agreement.

As to
byelaws.

104. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be—

(a) in the case of byelaws made under the following sections of this Act:—

Section 94 (Byelaws as to pleasure fairs) ; and

Section 97 (Establishment of golf courses) ;

the Secretary of State ; and

(b) in all other cases the Minister.

105. Section 298 of the Act of 1936 shall apply to offences created by or under Part IV (Streets buildings sewers and drains) and Part V (Infectious disease sanitary provisions and nuisances) of this Act as if they were offences created by or under that Act except that the said section shall not apply to those created by or under section 71 (Ejection of steam and waste gas to annoyance of public) of this Act.

PART VIII
—cont.

Restriction
on right to
prosecute.

106. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Damages
and charges
to be settled
by court.

107. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration (other than questions or disputes to which the provisions of the Lands Clauses Acts apply) then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

Application of
Arbitration
Acts.

108. When any compensation costs damages or expenses is or are by any local enactment directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936:

Compensation
how to be
determined.

Provided that where any such compensation costs damages or expenses is or are directed or authorised to be paid or recovered in addition to any penalty for any offence the amount of such compensation costs damages or expenses in case of dispute may be ascertained by the court before whom any offender is convicted.

109. The Minister the Minister of Transport the Minister of Town and Country Planning and the Minister of Fuel and Power may hold such inquiries as they respectively may consider necessary in regard to the exercise of any powers conferred upon them or the giving of consents under this Act and section 290 of the Act of 1933 shall apply accordingly.

Inquiries by
Ministers.

110.—(1) The provisions of this Act to which this section applies shall come into operation on but not until such date as may be fixed by a resolution of the council of which date public notice shall be given by the Corporation by advertisement in one or more local newspapers circulating in the borough

Commence-
ment of
certain
provisions of
this Act.

PART VIII
—cont.

Every such advertisement shall also state the effect of the provisions to which it relates and the date specified therein as the date on which such provisions shall come into operation shall not be less than one month after the date of publication of the advertisement:

Provided that if the provision is one which requires the registration of any person or premises the application for the registration may be made and determined before the provision comes into operation.

(2) A copy of a newspaper containing such advertisement shall be sufficient evidence of the publication of the advertisement.

(3) This section shall apply to the following sections of this Act:—

Section 58 (Restrictions on attendance at schools and places of assembly);

Section 63 (Registration of hairdressers and barbers and their premises);

Section 68 (Notice of slaughter of animal unfit for food);

Section 69 (Registration of hawkers of food and their premises).

(4) As respects any of the said provisions which requires the registration of persons carrying on any business or of premises used for any purpose it shall be lawful for any person who when such provision comes into operation—

(a) was carrying on any such business or using any premises for any such purpose; and

(b) has made application in accordance with the provisions of this Act for such registration as is required by this Act;

to continue to carry on such business and to use such premises for such purpose until such time as he has been informed of the decision with regard to his application and if the decision is adverse during such further time as is provided under subsection (6) of section 111 (As to appeals) of this Act.

As to
appeals.

111.—(1) Any person aggrieved by any requirement refusal or other decision of the Corporation or of any officer thereof under Part IV (Streets buildings sewers and drains) or Part V (Infectious disease sanitary provisions and nuisances) of this Act may except where otherwise expressly provided or when some other right of appeal is conferred by this Act appeal to a court of summary jurisdiction.

(2) The procedure upon any such appeal shall be by way of complaint for an order and the Summary Jurisdiction Acts shall apply to the proceedings.

(3) The time within which any such appeal may be brought shall except where otherwise expressly provided be twenty-one days from the date on which notice of the requirement refusal or decision was published or served upon the person desiring to appeal and for the purposes of this subsection the making of the complaint shall be deemed to be the bringing of the appeal.

(4) In any case in which such an appeal lies the document notifying the requirement refusal or decision in the matter shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought unless these have already been stated in a notice to the person concerned informing him of his right to a hearing before a committee of the council with regard to the same matter.

(5) Where a person aggrieved by any order determination or other decision of a court of summary jurisdiction under this Act is not by any other enactment authorised to appeal to a court of quarter sessions he may except where otherwise expressly provided appeal to such a court.

(6) Where any requirement refusal order determination or other decision against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action or makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of such requirement refusal order determination or other decision or to use any premises for any purpose for which they were lawfully used up to such time—

- (a) no proceedings in respect of any failure to execute the work or take the action shall be taken ;
- (b) the Corporation shall not execute such work or take such action ; and
- (c) any such person may carry on such business and use such premises for such purpose ;

until the time for appealing has expired or when an appeal is lodged until the appeal has been disposed of or withdrawn or fails for non-prosecution thereof.

(7) Where upon an appeal under this Act a court varies or reverses any requirement refusal or other decision of the Corporation effect shall be given to the order of the court and in particular any necessary consent certificate or other document shall be granted or issued and any necessary entry in any register shall be made.

PART VIII
—cont.Application
of provisions
of Act of
1936.

112.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto:—

- Section 271 (Interpretation of “provide”);
Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
Section 276 (Power of local authority to sell certain materials);
Section 277 (Power of councils to require information as to ownership of premises);
Section 283 (Notices to be in writing; forms of notices &c.);
Section 284 (Authentication of documents);
Section 285 (Service of notices &c.);
Section 286 (Proof of resolutions &c.);
Section 287 (Power to enter premises);
Section 288 (Penalty for obstructing execution of Act);
Section 289 (Power to require occupier to permit works to be executed by owner);
Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
Section 292 (Power to make a charge in respect of establishment expenses);
Section 293 (Recovery of expenses &c.);
Section 294 (Limitation of liability of certain owners);
Section 295 (Power of local authority to grant charging orders);
Section 296 (Summary proceedings for offences);
Section 297 (Continuing offences and penalties);
Section 299 (Inclusion of several sums in one complaint &c.);
Section 304 (Judges and justices not to be disqualified by liability to rates);
Section 328 (Powers of Act to be cumulative);
Section 329 (Saving for certain provisions of the Land Charges Act 1925):

Provided that—

- (a) the said sections 277 287 288 289 291 292 293 294 295 and 329 shall only apply to the provisions contained in Part IV (Streets buildings sewers and drains) and Part V (Infectious disease sanitary provisions and nuisances) of this Act; and

(b) the said sections 287 and 288 shall not apply to the provisions of section 62 (Prohibition on sale of verminous articles) and section 63 (Registration of hairdressers and barbers and their premises) of this Act.

(2) Sections 283 284 285 296 299 and 304 of the Act of 1936 shall extend and apply in relation to the Act of 1929 as if such sections were re-enacted in that Act and in terms made applicable thereto.

113. The following enactments of the Act of 1929 are hereby Repealed:—

- | | |
|-------------|--|
| Section 30 | (No building allowed until street defined); |
| Section 37 | (Restriction on erection of temporary stands &c.); |
| Section 43 | (Removal of dilapidated and neglected buildings); |
| Section 44 | (As to dangerous buildings); |
| Section 50 | (Powers on inspection); |
| Section 51 | (Combined drains); |
| Section 52 | (Houses connected with a single private drain); |
| Section 59 | (Power to close Sunday schools and exclude children from entertainments); |
| Section 60 | (Restriction on attendance of children at Sunday schools and places of assembly when infectious disease prevails); |
| Section 66 | (Penalty on original vendor of unsound food); |
| Section 67 | (Further powers in relation to unsound food); |
| Section 68 | (As to inspection of premises used for storage of food); |
| Section 70 | (Registration of premises used for manufacture &c. of potted meats and ice-cream); |
| Section 71 | (Medical practitioners to notify cases of food poisoning); |
| Section 75 | (Regulation dustbins); |
| Section 90 | (Compensation for injuring lamps &c.); |
| Section 94 | (Mode of payment off of money borrowed); |
| Section 96 | (Power to re-borrow); |
| Section 98 | (Consolidated loans fund); |
| Section 109 | (Council not to regard trusts); |
| Section 110 | (Appointment of receiver); |
| Section 111 | (Protection of lender from inquiry); |

PART VIII
—cont.

Section 112 (Return to Minister with respect to repayment of debt);

Section 123 (In executing works in default of owner or occupier no liability for damages to be incurred except in case of negligence);

Section 131 (Authentication and service of notices);

Section 132 (Apportionment of expenses in case of joint owners);

Section 138 (Several sums in one summons);

Section 141 (Judges &c. not disqualified).

Saving for
town and
country
planning.

114. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Costs of
Act.

115. All costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act for that purpose.

PRINTED BY HENRY GEORGE GORDON WELCH, C.B.E.
Controller of His Majesty's Stationery Office and King's Printer
of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 13a Castle Street, Edinburgh, 2;
39 King Street, Manchester, 2; 2 Edmund Street, Birmingham, 3;
1 St. Andrew's Crescent, Cardiff; Tower Lane, Bristol, 1;
80 Chichester Street, Belfast
OR THROUGH ANY BOOKSELLER

Price 2s. 6d. net

PRINTED IN GREAT BRITAIN

(73863)